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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

APRIL 15, 2025

>> TEST TEST. SOUNDS LIKE IT'S COMING OUT OF YOUR PHONE, RIGHT? OKAY. I MEAN, IT SEEMS LIKE IT'S WORKING NOW. RIGHT? YOU'RE ON THE ZOOM. YOU CAN HEAR ME. I'M TALKING INTO THIS MIC. OKAY. OKAY. WELL, LET'S HOPE THIS WORKS.

>> TEST TEST. CAPTIONER, CAN YOU HEAR ME? IF THE AUDIO IS BAD, LET ME KNOW. TEST TEST, CAN YOU HEAR ME OKAY? IS THE QUALITY OF THE AUDIO GOOD OR? OKAY.

>> MAYOR ISHII: COUNCILMEMBERS, CAN I HAVE YOU COME TO THE FRONT, PLEASE? COUNCILMEMBERS O'KEEFE AND LUNAPARRA. THANK YOU. I FEEL LIKE I'M IN A GROCERY STORE RIGHT NOW.

[RECORDING IN PROGRESS]

>> MAYOR ISHII: ALL RIGHT, HI, EVERYONE. WE ARE BACK. THANK YOU SO MUCH FOR YOUR PATIENCE THIS EVENING, BETWEEN ALL THE MIC SITUATIONS, IT'S JUST MAKING OUR MEETING LONGER. I'M SORRY, FOLKS. WE'RE GOING TO HAVE QUIET. THANK YOU. WE ARE COMING BACK IN. FOR PEOPLE THAT MISSED IT, WE MOVED ITEMS 11 A AND B FROM CONSENT TO ACTION. BECAUSE THESE ITEMS ARE BEING TAKEN TOGETHER,

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WHAT I WANT TO DO IS THE PRESENTATIONS. WE HAVE FOLKS FROM PAB AND ODPA. OFFICE OF THE DIRECTOR OF POLICE ACCOUNTABILITY AND COMMENTS FROM CHIEF LOUIS, THAT IS FOR ITEM A AND COUNCILMEMBER BLACKABY HAS COMMENTS FOR ITEM 11 B AS THE AUTHOR OF THAT ITEM. WE WILL TAKE PUBLIC COMMENT. AND THEN WE WILL GO INTO COUNCIL COMMENTS AND QUESTIONS. SOUND GOOD? OKAY. ALL RIGHT. TAKE IT AWAY. POLICE INTRODUCE YOURSELVES.

>> GOOD EVENING, HONORABLE COUNCILMEMBERS --

>> MAYOR ISHII: SORRY, CAN YOU TURN ON THE MIC?

>> YES.

>> MAYOR ISHII: MAKE SURE YOU ARE CLOSE, BECAUSE THESE ONES --

>> IF YOU ALL DIDN'T KNOW THIS IS MY FIRST TIME EVER BEING AT A CITY COUNCIL MEETING AND PRESENTING. MY NAME IS JOSH KAITANO AND I'M THE CHAIR OF BERKELEY'S POLICE ACCOUNTABILITY BOARD AND MEMBER OF DISTRICT 3. I WILL TURN IT OVER TO THE PRIMARY AUTHOR ON THIS REPORT AND I WILL TAKE OVER AFTERWARDS.

>> GOOD EVENING, MAYOR, AND COUNCILMEMBERS. MY NAME IS KITTY CALAVITA, I WAS THE CHAIR OF THE PAB'S SUBCOMMITTEE TEXTING OFFENSES. AS YOU REMEMBER SEVERAL YEARS AGO, THE COMMUNITY AND ITS LEADERS WERE SHOCKED WHEN THEY SAW TEXT MESSAGES THAT HAD BEEN SENT BY MEMBERS OF THE DOWNTOWN TASK FORCE. SOME OF THESE MESSAGES SAID THINGS LIKE "HOW'S OPERATION 100 GOING?” THE EXPECTATION TO MEET 100 REFS IN A MONTH. AND WILL COME OUT WITH

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A NEW STRAIN THAT WIPES OUT THE HOMELESS POPULATION, WE WILL RIDEOUT THE BODIES. AND THE OTHER -- SCREWED UP THE VIDEO, ACTUALLY HE USED A DIFFERENT VERB, I'M NOT GOING TO SAY IT. I'VE BEEN ON THIS OVERSIGHT BODY FOR SEVEN YEARS, FIRST ON THE P.A.C. AND NOW ON THE PAB. IN MY 7-YEAR TENURE NOTHING HAS ERODED COMMUNITY TRUST AS MUCH AS THIS INCIDENT WHICH DREW MEDIA ATTENTION FROM ACROSS THE STATE FROM THE LOS ANGELES TIMES TO THE SAN FRANCISCO CHRONICLE. THE PAB LAUNCHED A POLICY AND PRACTICES REVIEW, WHICH IT WAS OUR DUTY TO DO UNDER THE CHARTER. AND WE WORKED FOR MANY MONTHS TO ACCESS THE INFORMATION WE NEEDED. ULTIMATELY WE MADE SEVERAL RESOLUTIONS -- RECOMMENDATIONS FOR REFORM. AND PRESENTED THOSE RECOMMENDATIONS TO THE COUNCIL'S PUBLIC SAFETY COMMITTEE A COUPLE OF MONTHS AGO. WHERE OUR REPORT RECEIVED A SUMMARY NEGATIVE REVIEW WITH NO QUESTIONS ASKED. SUBSEQUENTLY COUNCILMEMBER BLACKABY SUBMITTED A RESOLUTION, WHICH IS ON THE AGENDA TONIGHT, THAT INCORPORATED TWO OF OUR RECOMMENDATIONS FOR WHICH WE ARE VERY GRATEFUL. BUT GIVEN THAT RESOLUTION, IT IS PERPLEXING THAT OUR RECOMMENDATIONS WERE TREATED AS AN OMNIBUS PACKAGE AND REJECTED ALL TOGETHER. NOW I WILL TURN IT OVER TO CHAIR CAYETANO FOR SOME MORE DETAILS.

>> THANK YOU, KITTY. I WANT TO START BY APOLOGIZING TO THE COUNCIL. AND I WANTED TO CLARIFY ANY CONFUSION THAT OUR REPORT AND RECOMMENDATIONS CAUSED. THE FOUR RECOMMENDATIONS THAT ARE

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LISTED ON ITEMS 11 A OF THE CURRENT AGENDA ARE NOT AN OMNIBUS BILL. AND THEY ARE NOT THE ONLY RECOMMENDATIONS THAT THE PAB AND PUBLIC SAFETY COMMITTEE WERE ASKED TO CONSIDER. THE COMMITTEE HAS MADE AN UNQUALIFIED NEGATIVE RECOMMENDATION TO COUNCIL, BUT AT THE SAME MOMENT ASKED THIS COUNCIL TO CONFIRM A RESOLUTION SUBITEM 2 ADOPT K ENSURING FULL AND MEANINGFUL ACCOUNTABILITY AND SUBITEM 4, CALLING ON CALIFORNIA LEGISLATORS TO EXTEND THE PROHIBITION ON ARREST QUOTAS. WE THINK IN LIGHT OF THAT RESOLUTION INTRODUCED BY COUNCILMEMBER BLACKABY, THE NEGATIVE RECOMMENDATION ISN'T WARRANTED AND SENDS A MESSAGE THAT THE COUNCIL HAS NO CONFIDENCE IN THE BOARD'S DILIGENCE, EXPERTISE, EFFORT WHICH ARE ENTIRELY GEARED TO ENSURING POLICING IN BERKELEY IS FAIR, TRANSPARENT AND ACCOUNTABLE. SECOND, PAB MADE A RECOMMENDATION IN ITS REPORT FOR BPD TO ADOPT A POLICY BANNING EXPLICIT AND IMPLICIT ARREST QUOTAS IN BERKELEY. THE CHIEF SAID A QUOTA ISN'T NECESSARY BECAUSE BERKELEY POLICE DEPARTMENT DOESN'T HAVE A PRACTICE OF ARREST QUOTAS. WE DEEPLY DISAGREE AND ASK THIS COUNCIL TO DIRECT THE BPD TO IMPLEMENT SAMPLE QUOTA BAN POLICY ON ITEM 9 OF OUR REPORT. I WOULD DIRECT COUNCIL'S ATTENTION TO THE SLIDES WE PREPARED EVIDENCED IN OUR REPORT. I WAS AT KEVIN REECE'S BIRTHDAY PARTY JUST NOW AND DAY WAS THERE AND WE TALKED ABOUT DOWNTOWN TASK FORCE. HOW IS OPERATION 100 GOING? GOING ALL RIGHT. I LIKE THAT WAY OF THINKING, I'M GOING

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TO COME WITH A BIKE FORCE BOARD GAME, YOU DO SHIT AROUND THE CITY TO GO FORWARD, I WILL COME UP WITH A COOL AWARD FOR WINNER, MAYBE LIKE A WEEKLONG CHALLENGE, FAMOUS PEOPLE ARRESTED YOU GET BONUS. I WAS THINKING WHOEVER GETS THE LEAST ARRESTS TODAY DOES THE WAXING. EVEN IF THE BPD DOESN'T HAVE A PRACTICE OF ENCOURAGING IMPLICIT QUOTAS WE DON'T WRITE POLICY TO CORRECT PAST ACTS WE WRITE IT TO PREVENT FUTURE ACTS FROM HAPPENING. WRITTEN POLICY IS THE ONLY WAY TRUE ACCOUNTABILITY EXISTS. WE HAVE A POLICY AGAINST POLICE CHOKE HOLDS IN BERKELEY TO PREVENT ANY SWORN OFFICER FROM CHOKING ANYONE IN BERKELEY. IT'S A STATEMENT FROM THIS COUNCIL AND COMMUNITY ABOUT HOW WE EXPECT OUR SWORN POLICE OFFICERS TO ACT. LET ME TELL YOU WHAT BERKELEY POLICE DEPARTMENT SAYS ABOUT QUOTAS. THERE'S A SINGLE MENTION OF QUOTA IN 1339 PAGES OF POLICY MANUAL, SECTION 500.3 SAYS THIS DEPARTMENT DOES NOT ESTABLISH TICKET QUOTAS, SINGLING OUT TICKETS. AND THE NUMBER OF ARRESTS OR CITATIONS ISSUED BY ANY OFFICER SHALL NOT BE USED AS THE SOLE CRITERION FOR EVALUATING OFFICER OVERALL PERFORMANCE. WE SUBMIT THAT IT SHOULD NOT BE ANY CRITERION. AND THAT THIS COUNCIL DIRECT BPD TO IMPLEMENT THE POLICY WE HAVE PROVIDED IN CLEAR DETAIL. THANK YOU.

>> MAYOR ISHII: THANK YOU. HANSEL AGUILAR IS ALSO GOING TO SPEAK FOR FIVE MINUTES. IF YOU COULD GIVE HIM FIVE MINUTES.

>> I WON'T TAKE MY FULL FIVE MINUTES AND I APPRECIATE THE

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CONVERSATION. IT'S VERY UP LIFTING TONIGHT TO HEAR THE PROCLAMATIONS BUT NOW WE'RE GOING TO TALK ABOUT MORE SERIOUS MATTER. AND I THINK AS A COMMUNITY WE CAN ALL RESPECT WE WANT TO BE ON THE OTHER SIDE OF THIS, WHATEVER THIS IS. BUT I THINK WE SHOULD BE COMING OUT BETTER ON THE OTHER SIDE OF THIS. THERE'S OPPORTUNITY HERE TO TAKE ACCOUNTABILITY. I WILL ALSO TAKE ACCOUNTABILITY FOR ANY CONFUSION THE REPORT AND THE WAY IT WAS SUBMITTED CAUSED. IT WAS THE INTENT OF OUR OFFICE TO MAKE SURE THAT IT WAS FULLY REPRESENTING THE HARD WORK THAT THE BODY DID HERE. I JUST ALSO WANT TO INDICATE THAT OUR OFFICE EXERCISED A PROVISION WITHIN THE COMMISSIONER'S MANUAL THAT ALLOWS FOR A COMPANION REPORT. THIS IS RESERVED AS THE COMMISSION'S MANUAL FOR THE CITY MANAGER WHEN THEY, ONE OF THEIR COMMISSIONS OR BOARDS MAKES A REPORT, THE CITY MANAGER CAN SUBMIT A REPORT TO GIVE ANOTHER VIEW OR ADDITIONAL INFORMATION FOR COUNCIL TO CONSIDER. SO OUR REPORT ATTEMPTED TO DO THAT. WE PROVIDED EIGHT RECOMMENDATIONS THAT WENT TO OR INTENDED TO GO TO COUNCIL. TWO FOR THE CITY MANAGER AND TWO FOR THE COMMUNITY. SOME OF THEM HAVE ALREADY BEEN DISCUSSED. BUT ONE I WOULD LIKE TO START IS THE FINAL ONE. WHICH I MADE MENTION OF AT THE PUBLIC SAFETY COMMITTEE. IT'S TO ADOPT A RESOLUTION AND ISSUE A FORMAL APOLOGY. A LOT OF THE NEW COUNCILMEMBERS ARE NEW, SO THEY WERE NOT IN OFFICE WHEN THE NEWS CAME OUT. BUT A LOT OF INDIVIDUAL

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COUNCILMEMBERS DID MAKE STATEMENTS TO THE EFFECT THAT THIS DOES NOT REPRESENT OUR CITY. BUT THE COMMUNITY YET HAS TO HEAR A FORMAL COLLECTIVE APOLOGY. I THINK IF WE WANT TO COME OUT ON THE OTHER SIDE OF THIS, IT'S PROPER. MY ROLE IS TO BUILD TRUST BETWEEN THE COMMUNITY AND POLICE AND I AIM TO DO THAT BUT WE NEED TO DO THAT TRUTHFULLY IN A WAY THAT REFLECTS THE VALUES OF THIS COMMUNITY. THERE WERE OTHER RECOMMENDATIONS AND FOR THE SAKE OF TIME, I WON'T GET INTO THE WEEDS OF. BUT I THINK THIS INCIDENT, THIS CASE, IT WAS AN OPPORTUNITY FOR US TO TAKE A LOOK AT WHERE WE ARE AND REFLECT. AND WE HAVE SOME SYSTEM GAPS. COUNCIL WILL REMEMBER, FORMER BOARD MEMBER BLACKABY INDICATED THAT WE, WHEREAS IN RESOLUTION THAT ENCOURAGED OUR OFFICE AND THE PAB TO WORK WITH THE CITY MANAGER AND THE POLICE CHIEF TO CONTINUE TO USE THE MECHANISMS FOR POLICY REVIEW. WE AIM TO DO THAT. WE JUST WANT THE COMMUNITY TO BE REAFFIRMED THAT THE SYSTEM GAPS WE NOTED THEY WON'T BE LEFT HERE REGARDLESS WHATEVER OPTION OR ACTION THE COUNCIL TAKES TONIGHT. AND WE DO BELIEVE THAT WE CAN STRENGTHEN, NOT ONLY FOR US, BUT FOR THE COMMUNITY MEMBERS IN THE STATE OF CALIFORNIA. THERE ARE SOME SYSTEM REFORMS WE CALLED TO LEGISLATIVE ACTION FOR CODE SECTION 125.19 WHICH IS AN OPPORTUNITY FOR DIFFERENT OFFICES AROUND THE STATE TO TAP INTO THE ATTORNEY GENERAL. THAT, IF WE REFORM THAT TOOL, CALL TO STATE LEGISLATURE FOR OVERSIGHT WE WILL HAVE ACCESS THAT

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CAN BENEFIT THE WHOLE COMMUNITY IN CALIFORNIA, AND ALSO THE CITY OF BERKELEY. I ALSO WANT TO MAKE SURE QUICKLY THAT WE RECOGNIZE THAT THERE WERE SOME MISSTEPS IN TERMS OF COMMUNICATION, WHAT WAS BEING TOLD TO THE COMMUNITY ABOUT THIS EVENT. I BELIEVE WE STILL HAVE SYSTEM GAPS THERE. AND WE NEED TO STRENGTHEN OUR PROTOCOLS WITHIN OUR INTERNAL INFRASTRUCTURE TO MAKE SURE IT DOESN'T HAPPEN AGAIN. I YIELD THE REST OF MY TIME TO THE CHAIR.

>> I JUST WANT TO CLARIFY ONE THING, WHEN I SAID WE DISAGREE, I MEAN WE DISAGREE THAT POLICY IS NOT NECESSARY. WE ALSO DISAGREE THAT THIS BACK HERE DOES NOT REPRESENT ENCOURAGING IMPLICIT QUOTAS, WE HAVE NO VISIBILITY INTO WHAT THE POLICE DEPARTMENT IS CURRENTLY DOING WITH RESPECT TO ARREST QUOTAS TO THE EXTEND THE POLICE CHIEF AGREES ARREST QUOTAS WE INVITE THE CHIEF TO CRAFT THIS POLICY WITH US, AS THE COUNCIL DIRECTS. THANK YOU.

>> MAYOR ISHII: THANK YOU. CHIEF, DID YOU WANT TO ADDRESS ANYTHING? YEAH.

>> GOOD EVENING. SO THANK YOU, MADAM MAYOR FOR THE OPPORTUNITY TO MAKE A COUPLE COMMENTS. AND I WANT TO SAY VERY CLEARLY TO START, I COMPLETELY AGREE MISCONDUCT OF ANY KIND IS UNACCEPTABLE. THAT'S INCLUDES ALL FORMS OF BIAS. AND I NEEDED TO START THERE. I WANT TO FORMALLY THANK COUNCILMEMBER BLACKABY FOR HIS RESOLUTION TONIGHT, I THINK IT REFLECTS CLEARLY THE VALUES OF THE DEPARTMENT AND OUR CITY AS A WHOLE. THANK YOU. I ALSO

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WANT TO ACKNOWLEDGE THE AMOUNT OF WORK THAT WENT INTO THE REPORT THAT WAS PREPARED BY THE PAB IN THIS MATTER. I VALUE THE WORK OF THE PAB FOR BOTH THE ACCOUNTABILITY MEASURES IT PROVIDES THE COMMUNITY; THE OVERSIGHT IT PROVIDES THE COMMUNITY. I ALSO VALUE THE PROFESSIONALISM AND HARD WORK THAT MEMBERS OF THE DEPARTMENT. I THINK WE HAVE MADE A LOT OF PROGRESS OVER THE LAST SEVERAL YEARS TO LEAN INTO OUR WORK AROUND TRANSPARENCY AND ACCOUNTABILITY, TO STAND OFFICES UP LIKE OUR OFFICE OF STRATEGIC PLANNING AND ACCOUNTABILITY. TO LEAN INTO DATA AND PRODUCING DATA PUBLICLY. ANSWERS TO QUESTIONS LIKE HOW MANY ARRESTS YOU ARE MAKING. WHO IS BEING ARRESTED? HOW MUCH FORCE WE ARE USING ARE AVAILABLE TO THE PUBLIC IN REAL-TIME ON A TRANSPARENCY HUB. THAT'S THE POINT OF THAT MEASURE TO REALLY LEAN INTO THAT. TRAINING AND FOCUS IN A WE HAVE STARTED DOING, REALLY FOCUSES ON WHAT'S BEEN IDENTIFIED CALLED KIND TRAINING, REALLY LEANING INTO THOSE TRAINING TOPICS THAT COVER IMPLICIT BIAS, PROCEDURAL JUSTICE, CRISIS INTERVENTION. ALL OF THAT WORK MAKES US MORE PROFESSIONAL, MORE AWARE, MORE EMPATHETIC AND UNDERSTANDING SO WE CAN PROVIDE FAIR AND IMPARTIAL POLICING. I'M PROUD OF LEADING THIS DEPARTMENT, MY COMMITMENT IS TO CONTINUE TO EXPAND TO LOOK FOR WAYS TO CONTINUE TO BE COLLABORATIVE IN OUR PROCESSES. TO UPHOLD NOT ONLY THE VALUES OF PROFESSIONALISM WITHIN OUR ORGANIZATION AND MAKE SURE OUR CULTURE IS STRONG, BUT TO ENSURE

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THAT OUR POLICIES REFLECT THAT. AND TO ALSO ENSURE THAT WE ARE CARING FOR OFFICERS THAT ARE DOING THIS REALLY HARD WORK EVERY DAY. AND WE ARE RECOGNIZING THE PROTECTION OF THEIR RIGHTS FOR THEIR EMPLOYEE RIGHTS BUT ALSO OUR COMMUNITY'S SAFETY AND COMMUNITY'S VALUES. I BELIEVE WE ARE REALLY HIGH PERFORMING DEPARTMENT, I THINK THERE IS ALWAYS ROOM FOR IMPROVEMENT AND GROWTH. THAT'S MY COMMITMENT. I ALSO HAVE A RESPONSIBILITY TO BALANCE MY DUTY TO PROVIDE PUBLIC SAFETY TO THE COMMUNITY AGAINST SOME OF THE ADMINISTRATIVE BURDENS THAT CAN BE PLACED ON SOME OF OUR DATA COLLECTION AND THINGS LIKE THAT. I WANT TO KNOW WHAT'S IMPORTANT TO THE COUNCIL TO COLLECT AND REPORT ON. I WANT TO KNOW WHAT'S IMPORTANT TO THE POLICE ACCOUNTABILITY BOARD AND TO OUR COMMUNITY. THANK YOU.

>> MAYOR ISHII: THANK YOU. AND SO, YOU KNOW, WE JUST, SO FOLKS ARE CLEAR. WE'VE GOT ITEMS 11 A AND 11 B, AND THE INTENT IS THEY WOULD BE LOOKED AT TOGETHER. SO I WANT TO LET COUNCILMEMBER BLACKABY ALSO INTRODUCE HIS ITEM AND MAKE SOME COMMENTS. WE WILL ALSO GIVE YOU FIVE MINUTES. EVEN THOUGH I DOUBT YOU WILL NEED IT. BUT YOU KNOW.

>> B. BLACKABY: I DO DRONE ON, I WILL BE BRIEF, AS I SAW ON TWITTER. SO I WILL BE BRIEF. A COUPLE THINGS, ONE, I APPRECIATE THE WORK. I SERVED ON THE PAB, SO I APPRECIATE THE WORK THAT IT DOES. IT'S IMPORTANT. I ALSO APPRECIATE THE JOB THAT THE CHIEF

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HAS, IT'S IMPORTANT. IT'S IMPORTANT THAT BOTH BODIES AND THE DIRECTOR ARE HIGH FUNCTIONING. THAT'S HOW WE WILL GET THE OUTCOMES THAT WE WANT. OVERSIGHT IS STRONG IN THE DEPARTMENT IS STRONG AND THESE THINGS, WHILE THERE ARE TIMES THEY ARE IN OPPOSITION THEY NEED TO WORK TOGETHER TO GET US TO THE BEST OUTCOME. I WILL SAY FROM THE POLICY COMMITTEE'S PERSPECTIVE, I THINK WHAT HAPPENED IN THIS PROCESS, THERE WAS A LOT OF THINGS HAPPENING AT ONE TIME. ONE THERE WAS A REPORT WE WERE BEING ASKED TO REVIEW AND WE DID REVIEW. AND A SET OF RECOMMENDATION THAT'S DIDN'T HAVE ANYTHING ACTIONABLE IN THEM, THAT THE COUNCIL COULD ACT UPON. SO WHEN WE GOT AT THE POLICY COMMITTEE LEVEL, WE REVIEWED THE REPORT, HEARD THE REPORT. I THINK THEN IT WAS MY EFFORT TO TRY TO BE RESPONSIVE TO DO WHAT WE COULD TO SORT OF ACKNOWLEDGE THE RECOMMENDATIONS AND PUT SOMETHING FORWARD THAT THE COUNCIL COULD REVIEW AND ADOPT. THAT WAS REALLY THE EFFORT HERE. I WOULD SAY LEARNING GOING FORWARD IS, IF YOU HAVE LANGUAGE, LIKE COME WITH SOME OF THAT PREPARED SO WE CAN ACTUALLY HAVE THE CONVERSATION ABOUT THAT. BECAUSE THEN THERE WOULD BE A REPORT. AND THEN THE DRAFT OF A RESOLUTION OR DRAFT OF AN ORDINANCE OR DRAFT OF A POLICY, IF YOU ARE NEEDING OUR INPUT ON THAT. ANYWAY, I THINK GOING FORWARD THAT WOULD BE MORE HELPFUL. WE BASICALLY HAD TO CREATE THAT IN THE PROCESS. I WILL MAKE THAT ONE COMMENT. I ALSO SUGGEST THAT THERE ARE EXISTING

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MECHANISMS FOR HAVING THE DISCUSSION ABOUT THE ARREST QUOTA POLICY. I THINK THAT SOUNDS LIKE A WORTHY GOAL. I THINK WE SHOULD HAVE THAT. AND AS I UNDERSTAND FROM MY TIME, THERE'S A POLICY REVIEW PROCESS BETWEEN THE DEPARTMENT AND PAB WHERE THAT GETS FLESHED OUT AND I THINK THAT SHOULD HAPPEN AND WE SHOULD MOVE FORWARD WITH THAT. THAT'S THE WAY IT SHOULD GO. I WILL ALSO ACKNOWLEDGE JUST THE FACT THIS REPORT IS HERE AT ALL, THE FACT THE PAB IS HERE AT ALL IS ALSO EVIDENCE THAT YES, THE PROCESS WAS A LITTLE CREAKY BUT IT DID WORK. THERE WAS A REPORT THAT WAS PRODUCED. YOU ARE HERE PRESENTING THE REPORT AND THE PUBLIC IS TALKING ABOUT IT. THAT IS OVERSIGHT, SO IT'S HAPPENING. COULD IT HAVE HAPPENED BETTER, CLEANER? ABSOLUTELY. BUT IT IS HERE IN THE PUBLIC, WE ARE TALKING ABOUT IT, SO OVERSIGHT IS HAPPENING. I ALSO WANT THERE TO BE THAT KIND OF ACKNOWLEDGMENT. THE LAST THING I THINK I WILL SAY IS THAT I THINK UNDERLINING ALL OF THIS, WE HAVEN'T REALLY TALKED ABOUT IT, LOOK, IT WAS ALREADY HAPPENING WHEN I JOINED THE PAB, THERE WAS MEET AND CONFER PROCESS ABOUT PERMANENT REGULATIONS WHICH IS STILL NOT COMPLETE. WHERE EXACTLY THAT FALLS IN TERMS OF THE NEGOTIATION AND THE WORK BETWEEN THE PAB AND THE DEPARTMENT, AND THE UNION AND THE CITY ATTORNEY'S OFFICE AND ALL OF THAT, I WOULD JUST URGE US ALL TO TRY TO GET THOSE REGULATIONS DONE. BECAUSE I THINK THERE'S ALSO AN ELEMENT OF JUST CERTAINTY FOR EVERYONE THAT WE ALL KNOW

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HOW THE PROCESS SHOULD WORK. WHETHER YOU ARE A SUBJECT OFFICER GOING THROUGH COMPLAINT, WHETHER YOU ARE THE PAB DOING OVERSIGHT, I THINK WE WOULD ALL BE BETTER SERVED IF THOSE REGULATIONS ARE COMPLETED AND MEET AND CONFER COMES TO AN END VERY QUICKLY. I DO HAVE ONE MORE FINAL-FINAL. IN THE LANGUAGE, WE DID TRY TO ACKNOWLEDGE AS MANY OF THE POINTS AS WE COULD IN THAT LIST OF RECOMMENDATIONS. WE CALLED OUT MISCONDUCT OF ANY KIND. WE CALL IT UNACCEPTABLE. WE GAVE CREDIT TO THE IMPORTANCE OF CIVILIAN OVERSIGHT. WE GAVE CREDIT TO THE TREMENDOUS AMOUNT OF WORK THAT WAS DONE IN CRAFTING THIS REPORT. YOU KNOW, WE AFFIRMED THE PAB'S RIGHT AND ABILITY TO ACCESS INFORMATION UNDER THE CHARTER. WE ALSO AFFIRMED OUR OPPOSITION TO ARREST QUOTAS, IF IT PASSES, I'M SAYING THAT'S WHAT WE ARE PROPOSING HERE. AND WE ARE ASKING THE LEGISLATURE EXTEND THE PROHIBITION ON ARREST QUOTAS BEYOND THE VEHICLE CODE. I TRIED TO CRAFT SOMETHING I THOUGHT WE COULD GET BEHIND THAT HIT ON AS MANY OF THESE ITEMS AS WE COULD. I VIEW 11 B AS BEING RESPONSIVE TO WHAT CAME TO US IN 11 A, SO THAT WAS THE SPIRIT IT WAS DRAFTED. THANKS, MAYOR FOR THE OPPORTUNITY. I THINK THAT'S IT FROM MY SIDE.

>> MAYOR ISHII: THANK YOU, I APPRECIATE YOUR PRESENTATIONS AND COMMENTS. I WILL OPEN IT UP FOR COMMENT ON, I GUESS BOTH OF THESE ITEMS FROM THE PUBLIC. AND THEN WE WILL COME BACK AND WE WILL DO COUNCIL COMMENTS AND QUESTIONS. SO IF ANYONE HAS ANY

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COMMENTS FROM THE PUBLIC, PLEASE STEP FORWARD. GO AHEAD.

>> THANK YOU. JUST ONE MINUTE, RIGHT?

>> MAYOR ISHII: JUST PUT THE MIC UP A LITTLE BIT.

>> GEORGE LIPPMAN. AS THE DIRECTOR SAID, FORMER CHAIR OF THE PRC. I HAVE SLIGHTLY DIFFERENT PERSPECTIVE. THAN THE ONE JUST EXPRESSED. I REMEMBER TALKING WITH A FORMER MAYOR, WHO I WON'T NAME, BUT WE WERE TALKING ABOUT AN ISSUE THAT HAD COME UP THAT THE COUNCIL MADE A DECISION ON WITHOUT CONSULTING THE PRC AT THAT TIME. AND I SAID YOU KNOW, THIS IS WHAT WE EXIST FOR. IS TO HELP. WE ARE HELPING. BECAUSE YOU CAN'T KNOW EVERY SINGLE SUBJECT BEFORE EVERY SINGLE COMMISSION, THAT'S WHY YOU HAVE COMMISSIONS. BUT IT WAS CLEAR, SO THEIR RESPONSE WAS, NO YOU MAKE OUR JOB HARDER. THIS IS ABOUT WHAT I CAN SAY IN ONE MINUTE, IT FEELS LIKE THE COUNCIL NEEDS TO DECIDE, DO YOU WANT THESE COMMISSIONS LIKE THIS ONE TO FUNCTION, OR DO YOU FIND IT AN ANNOYANCE?

>> MAYOR ISHII: FINISH YOUR SENTENCE.

>> PLEASE MAKE USE OF IT.

>> MAYOR ISHII: THANK YOU.

>> FIND A WAY TO WORK TOGETHER. THANKS.

>> MAYOR ISHII: THANK YOU.

>> I HAVE A MINUTE FROM -- ELANA AUERBACH, DISTRICT 4. SO I HAVE A TEENAGE SON. I KNOW WE JUST HEARD FROM YOU, COUNCILMEMBER,

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THAT OVERSIGHT IS HAPPENING. WELL, SO WE MONITOR HIS, WITH HIS REQUESTS, HIS VIDEO USE. SO IF I DON'T TURN OFF HIS ACCESS TO HIS APPS, THEN OVERSIGHT IS NOT HAPPENING. SO WE CAN WANT OVERSIGHT TO HAPPEN. BUT UNLESS I PUT IN PLACE CERTAIN THINGS THEN OVERSIGHT DOESN'T HAPPEN. WHAT I UNDERSTAND THE POLICE ACCOUNTABILITY BOARD HAD FOUR VERY BASIC RECOMMENDATIONS THAT WOULD BEGIN TO ENSURE THAT THIS EGREGIOUS BEHAVIOR, WE ALL AGREE IS EGREGIOUS, INCLUDING THE CHIEF HERSELF, I THINK, DOESN'T WANT THIS BEHAVIOR TO CONTINUE. FOUR SIMPLE RECOMMENDATIONS. MANY OF YOU CAMPAIGNED IN THE PAST YEAR, OR BEFORE, SAYING THAT YOU WANT TRANSPARENCY AND ACCOUNTABILITY. THIS IS YOUR OPPORTUNITY TO SAY YES, WE DO. WE WANT, BECAUSE I WANT TO BE MY WORD AND I ALSO WANT TO SUPPORT THE COMMUNITY THAT VOTED OVER 80% FOR MORE POLICE OVERSIGHT. THIS TEXT SCANDAL IS A SHAMEFUL EPISODE IN OUR CITY'S HISTORY AND IT MUST NOT BE MINIMIZED OR FORGOTTEN. WITHOUT THE COURAGE OF A WHISTLE-BLOWER, THE COMMUNITY WOULD HAVE NEVER, IT WOULD HAVE REMAINED IN THE DARK. JUST BECAUSE WE DON'T KNOW AND IT WAS SPOKEN AT THE PUBLIC SAFETY COMMUNITY MEETING, WE DON'T KNOW, WE DON'T THINK ANYTHING ELSE HAS HAPPENED. WE WON'T KNOW UNLESS A WHISTLE-BLOWER COMES FORWARD OR WE IMPLEMENT, WE ACTUALLY IMPLEMENT OVERSIGHT. SO THAT THESE RECOMMENDATIONS, SIMPLE RECOMMENDATIONS, THAT THE POLICE ACCOUNTABILITY BOARD SPENT OVER A YEAR DOING, THAT'S HOW WE ARE

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GOING TO HAVE OVERSIGHT. THAT'S HOW WE ARE GOING TO BUILD TRUST AND BEGIN TO BUILD TRUST WITH THE COMMUNITY IN OUR POLICE DEPARTMENT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> KIT SAGINOR. THANK YOU SO MUCH FOR TAKING THIS OFF CONSENT. I'M VERY GRATEFUL TO THE THREE COUNCILMEMBERS WHO DID TAKE IT OFF CONSENT, OTHERWISE IT WOULDN'T BE HAPPENING, THIS DISCUSSION, YOU WOULDN'T BE HEARING FROM THE PAB ABOUT THIS. THERE WERE THREE, DEFINITELY, SEVERAL DEFINITELY ACTIONABLE ITEMS THAT WERE PRESENTED TO YOU THAT YOU COULD TAKE ACTION ON TONIGHT. ONE, THERE SHOULD BE AN ACTUAL WRITTEN POLICY AGAINST A SET NUMBER OF ARRESTS. WE KNOW THAT TELLING PEOPLE YOU NEED TO MAKE THIS MANY ARRESTS, THAT'S ONE THING HAPPENING WITH ICE. NEED TO ARREST THESE PEOPLE, I DON'T KNOW WHY, WELL THEY HAVE TATTOOS. HAVING QUOTAS IS A TERRIBLE THING. THE OTHER ISSUE IS THE SUPPORT FOR THE PAB TO GET THE INFORMATION THEY NEED TO REVIEW A PRACTICE AND POLICY. WHICH IS DIFFERENT FROM GETTING INFORMATION ABOUT INDIVIDUAL OFFICERS, I'M GOING TO FINISH MY SENTENCE, IT'S DIFFERENT FROM GETTING INFORMATION FROM DIFFERENT OFFICERS FOR A COMPLAINT ABOUT AN OFFICER BUT THEY ARE REQUIRED TO LOOK NOT JUST AT WRITTEN POLICIES BUT WHAT IS THE ACTUAL PRACTICE FOR THOSE POLICIES. THANK YOU.

>> MAYOR ISHII: THANK YOU, KIT.

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>> GOOD EVENING, COUNCIL. BEFORE MY MINUTE STARTS. GEORGE VELEZ, FORMER SECOND LONGEST SERVING MEMBER OF THE PRC, 14 MEMBERS, FORMER D.O.J. -- RELATED TO PAST SIMILAR INFRACTIONS DURING 2016, BLACK LIVES MATTER DEMONSTRATIONS OF "GO GET THEM". 81% OF VOTERS APPROVED OF PAB TO GIVE POWERS TO INVESTIGATE AND RECOMMEND POLICY CHANGES. YOU HAVE AN AGENCY AND BOARD COMPRISES SUBJECT MATTER EXPERTS WITH WELL-THOUGHT-OUT RECOMMENDATIONS. CITY COUNCIL IN 2020 AND 2022 MOVED THE BAR FORWARD. LEGITIMACY AND TRUST WHILE TAKING TANGIBLE ACTION TO INCREASE ACCOUNTABILITY. APPROVE THE RECOMMENDATIONS. CONTINUE TO BE A NATIONAL LEADER IN OVERSIGHT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MADAM MAYOR AND COUNCIL. MY NAME IS NATHAN MIZELL. I AM A RENT BOARD COMMISSIONER IN THE CITY OF BERKELEY. FORMER VICE CHAIR OF THE PAB, CHAIR OF THE REIMAGINING PUBLIC SAFETY TASK FORCE AND FRIENDS OF B.A.R.T. POLICING TASK FORCE, I'M THE ONLY ONE IN THE CITY WHO HAS DONE ALL THREE. I CAN TELL YOU ABOUT THE OVERSIGHT PROBLEMS IN THE CITY. ONE OF THE BIG PROBLEMS IS ON TIMES CITY LEADERS DON'T LISTEN. THEY OFTEN BELIEVE ON THIS ISSUE, NOT ON ALL, WE AGREE ON MANY, THAT WE CAN JUST GO WITH THE POLICE. IT'S MY UNDERSTANDING TONIGHT YOU INTEND TO ADOPT NONE OF THEM. YOU INTEND INSTEAD FOR A SYMBOLIC SOMETHING TO SAY THAT WE OPPOSE RACISM IN BERKELEY. THANK YOU,

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I'M GLAD TO HEAR WE WANT TO OPPOSE RACISM IN BERKELEY. I WOULD LIKE TO HEAR WHAT SUBSTANTIVE STEPS WE WILL TAKE TO PREVENT THE PERPETUATING RACISM.

>> MAYOR ISHII: YOUR TIME IS UP.

>> I UNDERSTAND. THAT'S THE THING. DURING --

>> MAYOR ISHII: EXCUSE ME. YOU ARE GETTING A MINUTE FROM SOMEONE ELSE.

>> THANK YOU.

>> MAYOR ISHII: EXCUSE ME, FIRST OF ALL, ONE SECOND, BEFORE YOU CONTINUE, YOU ARE GIVEN A MINUTE FROM SOMEONE ELSE, BUT WHEN I TELL YOU YOUR TIME IS UP YOU NEED TO RESPECT THAT, PLEASE.

>> I WILL DO THAT MADAM MAYOR. I HOPE THE CITY WILL UNDERSTAND WHEN I WAS BEING STONEWALLED AND PAB WAS BEING STONEWALLED THIS ENSURES ACCESS THAT WAS A LOT MORE RUDE THAN WHAT I JUST DID, FOLKS. THAT WAS A VIOLATION OF OUR CITY'S CHARTER. AND NOW THAT IT'S BEEN BROUGHT FORTH TO THIS COUNCIL, REASONABLE RECOMMENDATIONS LIKE PERHAPS POSTING, WHICH THEY CAN, AFTER ROBUST DUE PROCESS WHEN OFFICERS VIOLATE OR ARE DISHONEST, COMMIT SEXUAL ASSAULT THAT IS PUBLIC INFORMATION, THIS COUNCIL SAYS NO, WE AREN'T INTERESTED IN THAT, HERE IS A NICE STATEMENT ABOUT RACISM. THAT'S NOT REAL ACTION, FOLKS. I SERVED THREE AND A HALF YEARS ON THE PAB; THAT'S A LOT MORE THAN ONE. I SERVED AS CHAIR OF REIMAGINING PUBLIC SAFETY. YOU JUST HEARD FROM ONE OF

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THE MOST QUALIFIED INDIVIDUALS ON POLICE ACCOUNTABILITY, THEY ARE ALL TELLING YOU THE SAME THING. GIVE US THIS OPPORTUNITY. LET'S WORK ON REAL POLICY. SEND THIS BACK, TELL THE PAB, DAMN IT GET TO WORK. GIVE THEM THE OPPORTUNITY. THANK YOU. [APPLAUSE]

>> WITH EVERYTHING THAT'S GOING ON IN THE FEDERAL GOVERNMENT, IT SEEMS AS IF WE HAVE LITTLE CONTROL OVER ANYTHING. AND THIS IS SOMETHING WE HAVE CONTROL OVER. AT LEAST AT THIS POINT WE CAN RECOMMEND TO THE STATE ABOUT NOT HAVING QUOTAS, ANY QUOTAS, NOT ONLY TRAFFIC QUOTAS. AND SO COUNCIL SHOULD PROCEED WITH THAT. SECOND, COUNCIL OFTEN ADDRESSES HOW THE POLICE DEPARTMENT NEEDS THE TOOLS TO DO THEIR JOB. AND THEY DO NEED THE TOOLS TO DO THEIR JOB. WELL THE POLICE ACCOUNTABILITY BOARD ALSO NEEDS THE TOOLS TO DO THEIR JOB. WHICH IS OVERSIGHT. AND OVERSIGHT IS ALWAYS IMPORTANT TO MAKE SURE THAT THINGS ARE WORKING WELL. THAT THERE ALWAYS IS ACCOUNTABILITY. SO PLEASE LOOK TOWARDS WHAT TOOLS THEY NEED TO HAVE ACCESS TO RECORDS, ACCESS TO INFORMATION, TO PROPERLY DO THEIR JOB. THANK YOU.

>> MAYOR ISHII: THANK YOU. IS THERE ADDITIONAL COMMENT ON THIS ITEM ONLINE?

>> CITY CLERK: YES, THERE'S, LET'S SEE, FIRST, WE HAVE SEVEN COMMENTERS. ANDREA PRITCHETT.

>> MAY I GIVE MS. PRITCHETT A MINUTE OF MINE?

>> MAYOR ISHII: YES. ANDREA, YOU HAVE AN EXTRA MINUTE. ANDREA

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PRITCHETT, ARE YOU THERE?

>> HELLO?

>> MAYOR ISHII: YES. WE CAN HEAR YOU.

>> GREAT. YEAH, COUNCILMEMBERS, I JUST WANT TO SAY, I ALSO SERVED ON THE POLICE REVIEW COMMISSION FOR TWO YEARS AND SADLY I HAD TO RESIGN BECAUSE IT HAD BECOME SUCH A FARCE. AND SUCH A HOLLOW EXERCISE IN FUTILITY BECAUSE OF THE STONE WALLING OF THE POLICE DEPARTMENT. THE FAKE COLLABORATIONS. THE MISSED DEADLINES. THE FOOT DRAGGING. THE STONEWALLING. AND I HAD HOPED THAT WITH THE NEW POLICE ACCOUNTABILITY BOARD THAT MAYBE SOME OF THAT WOULD CHANGE. APPARENTLY NOT. YOU KNOW. I WORK WITH BERKELEY COP WATCH; WE DID OUR OWN INVESTIGATION. WE GOT A PUBLIC RECORDS ACT REQUEST THAT GOT FIVE YEARS OF DATA FROM THE DISTRICT ATTORNEY. WE LOOKED, WE CRUNCHED THE NUMBERS, WE LOOKED AT IT. YES, OF COURSE, ACCORDING TO OFFICER SHEDOUDY, THE DATA BORE IT OUT, THERE WAS A SPIKE IN ARRESTS. THOSE ARRESTS WERE DROPPED, THEY WERE BAD ARRESTS, IT WAS PURE POLITICS THAT DROVE THAT. SO, YEAH, WE DID OUR OWN INVESTIGATION, WE ARE VERY CLEAR. BUT LOOK AT WHERE WE ARE RIGHT NOW. THE INCIDENT THAT WE SHEDOUDY BLEW THE WHISTLE ON THIS WAS THREE YEARS AGO. DO NOT KID YOURSELF, BERKELEY IS WITHOUT EFFECTIVE OVERSIGHT. BECAUSE THE CITY COUNCIL HAS NOT EMPOWERED THE POLICE ACCOUNTABILITY BOARD TO ACTUALLY DO THE JOB THAT THE VOTERS DEMANDED. AND TO

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GIVE THESE PLATITUDES, WE AFFIRM, AFFIRM THE PAB. GIVE THEM DATA. GIVE THEM ACCESS TO THE RECORDS. NOT ONE COP WAS PUNISHED, NOT ONE POLICY WAS CHANGED AS A RESULT OF ALL OF THIS.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: OKAY, NEXT UP IS ERIKA ANDERSEN. HOT MIC. ERIKA ANDERSEN.

>> THAT'S OKAY. I DON'T NEED TO MAKE A COMMENT. I WANTED TO CEDE TO SOMEONE ELSE AND THEY GOT THEIR TIME. THANK YOU.

>> CITY CLERK: OKAY. M.J. BAUMANN.

>> HELLO, M.J. BAUMANN, IN DISTRICT 5, SHOSHANA'S DISTRICT. I WAS APPALLED WHEN I LEARNED ABOUT THE BIKE TEAM. I WAS EQUALLY SHOCKED THAT THE CITY TOOK NO CORRECTIVE ACTION. NOW THROUGH THE HARD WORK OF THE POLICE ACCOUNTABILITY BOARD, WE HAVE SOME ACTIONABLE THINGS, SOME MEANINGFUL MEASURES THAT CAN BE TAKEN TO PROMOTE ACCOUNTABILITY. SO I ASK THAT YOU RESPECT AND VALIDATE THEIR HARD WORK BY ADOPTING THE REPORT AS IT IS. THANK YOU.

>> CITY CLERK: OKAY. NEXT IS KANDEA GANDHI.

>> CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> GREAT. THANK YOU SO MUCH. HONORABLE MAYOR ISHII AND CITY COUNCIL MEMBERS, I JUST WANTED TO SPEAK ON BEHALF OF THE LEAGUE OF WOMEN VOTERS BERKELEY EMERYVILLE. THE LEAGUE HAS BEEN A STRONG SUPPORTER OF EMPOWERING THE BERKELEY POLICE

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ACCOUNTABILITY BOARD SINCE IT'S INCEPTION WHEN IT WAS VOTED FIVE YEARS AGO BY BERKELEY VOTERS SO IT COULD SUPPORT CONSTRUCTIVE COMMUNITY RELATIONS. AFTER LISTENING TO KITTY DISCUSS THE BERKELEY POLICE DEPARTMENT TEXTING ALLEGATIONS AND REVIEWING THE REPORT, THE LEAGUE DECIDED TO CONVEY OUR SUPPORT FOR THEIR EXTENSIVE WORK AND SENSIBLE RECOMMENDATIONS, WHICH SHOULD BE ENFORCED AS CITY POLICY. TO NAME JUST A FEW, COUNCIL NEEDS TO AFFIRM THE PAB'S RIGHT TO ACCESS DOCUMENTS AND RECORDS IN A TIMELY MANNER. AND FURTHERANCE OF THE PAB'S CENTRAL ACCOUNTABILITY FUNCTION SO IT CAN CONDUCT INVESTIGATIONS. INFORMAL AND FORMAL ARRESTS QUOTAS THAT PROMOTE --

>> MAYOR ISHII: COULD YOU PAUSE FOR A SECOND? IS THERE ANOTHER MINUTE, THERE'S ANOTHER MINUTE HERE FOR YOU, SO YOU CAN CONTINUE ON.

>> OKAY, IT WON'T BE MUCH LONGER. WE ALSO BELIEVE THAT INFORMAL AND FORMAL ARREST QUOTAS THAT PROMOTE OVER POLICING SHOULD BE EXPLICITLY PROHIBITED, AS WELL AS OFFICER MISCONDUCT, WHETHER ON OR OFF DUTY, WHICH SHOULD BE CAPTURED IN A DATABASE. FOLLOWING THEIR PRUDENT RECOMMENDATIONS THE PAB'S PRUDENT RECOMMENDATIONS WE BELIEVE WE WILL INCREASE PUBLIC TRUST IN BPD AND THE ABILITY OF THE PAB TO BE A HELPFUL PARTNER AND OVERSIGHT BODY. THANK YOU SO MUCH.

>> CITY CLERK: OKAY.

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>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS DANIEL BROWNSON.

>> HELLO?

>> CITY CLERK: YES, WE CAN HEAR YOU.

>> OKAY. SO, WHY EVEN HAVE THIS BOARD IF YOU'RE NOT GOING TO ACTUALLY IMPLEMENT ANY OF ITS RECOMMENDATIONS THAT THEY SPENT SO LONG ON? WE DON'T NEED MORE RHETORIC FROM OUR ELECTEDS. WE NEED ACTUAL POLICY. AS FAR AS I KNOW, NONE OF THE OFFICERS INVOLVED IN WHAT PEOPLE ARE CALLING TEXT GATE, WERE EVER ACTUALLY LET GO OR PUNISHED OR DISCIPLINED. AND JUST THE CASUAL NATURE OF THEIR CONVERSATIONS ABOUT, YOU KNOW, MAKING IT TO 100 ARRESTS, AS IF THAT IS SOME SORT OF INDICATOR OF EFFECTIVENESS OR SEEING THEIR JOB AS GOING OUT AND KICKING ASS ARE INDICATIVE OF A HUGE CULTURAL PROBLEM WITHIN BPD.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: RIVKA POLATNICK.

>> HI, I WAS VERY INVOLVED WITH THE POLICE ACCOUNTABILITY BOARD. AND THERE'S A LONG HISTORY OF THE BOARD BEING BY PASSED, IGNORED, NOT TAKEN SERIOUSLY, ROADBLOCKS. SO HERE IS A CHANCE TO AFFIRM THE VALUE AND IMPORTANCE OF THEIR HARD WORK. AND IT WOULD REALLY HELP COMMUNITY TRUST IN THE POLICE AND THE COUNCIL TO SEE SOME REAL ACTION BECAUSE, LIKE THE GUY WHO WAS THE WORST OFFENDER WITH THE TEXT MESSAGING, HE WAS THE HEAD OF THE POLICE

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OFFICERS ASSOCIATION, I BELIEVE. SO THAT REALLY SAYS THERE'S A PROBLEM. AND THE INVESTIGATION THAT THE COUNCIL DID, THE INDEPENDENT -- I MEAN, YOU HAD AN INDEPENDENT INVESTIGATION DONE THAT SAID THERE WAS NOT A PROBLEM OF RACISM OR QUOTAS. HOW COULD THEY POSSIBLY HAVE COME UP WITH THAT CONCLUSION?

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENTS.

>> POLICE ACCOUNTABILITY BOARD --

>> MAYOR ISHII: THANK YOU SO MUCH FOR YOUR COMMENTS.

>> CITY CLERK: OKAY, KELLY HAMMARGREN.

>> OKAY. I'M LOOKING AT THE JANUARY 21ST AGENDA. AND IN THAT AGENDA IS THE EARLY INTERVENTION PROGRAM, CONTRACT $200,000 WITH AN OPTION TO EXTEND FOR TWO YEARS FOR $400,000. IF WE'RE GOING TO HAVE EARLY INTERVENTION POLICE OFFICERS NEED TO BE SUPPORTED. AND WHEN I TALK ABOUT SUPPORTED, I MEAN THOSE POLICE OFFICERS WHO WANT TO TALK ABOUT A PROBLEM WITH ANOTHER OFFICER. AND THIS WHOLE TEXT MESSAGING, THE WAY IT'S BEEN HANDLED IN ALL THE YEARS, IT JUST SEEMS FROM THE OUTSIDE, IT JUST APPEARS TO BE A SCANDAL. IN 2022 I WAS ASKED TO REVIEW A BOOK "WALKING WITH THE DEVIL, THE POLICE CODE OF SILENCE" BY MICHAEL W. --

>> MAYOR ISHII: KELLY, YOUR TIME IS UP. THANKS FOR YOUR COMMENTS. HOW MANY MORE COMMENTS DO WE HAVE LEFT?

>> CITY CLERK: WE HAVE ONE MORE COMMENTER, MARIA SOL.

>> OH, GOOD EVENING, THANK YOU SO VERY MUCH. GIVEN THAT I'M ON

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TWO COMMISSIONS I SECOND ANDREA AND GEORGE'S COMMENTS ABOUT HOW FRUSTRATING OUR IMPOTENCY SEEMS TO BE BRINGING IN ACTION WHAT SEEMS TO BE ONE OFFICER IN THIS ROOM THAT DEMONSTRATED THE TRUE EPITOME OF SERVING AND PROTECTING. HE LITERALLY SERVED AND PROTECTED ME IN A VERY ABUSIVE SITUATION. SO I KNOW THAT'S THE MISSION OF POLICE OFFICERS. AND I CAN ALSO SPEAK TO HOW TRAUMATIZED THE GENERAL PUBLIC CAN SO EASILY BE BECAUSE OF THE ABUSE THAT HAS HAPPENED. SO I JUST ENCOURAGE US TO PLEASE PUT INTO ACTION WAYS AND MEANS OF NOT ONLY CULTURING MORE RESPECT AND COURTESY, BUT ALSO REDRESSING GRIEVANCES THAT WE MIGHT DIRECTLY HAVE, LIKE I HAVE. THANK YOU.

>> MAYOR ISHII: THANK YOU, MARIA. THANKS FOR YOUR COMMENTS.

>> CITY CLERK: OKAY.

>> MAYOR ISHII: WAS THAT THE FINAL COMMENT?

>> CITY CLERK: YEP.

>> MAYOR ISHII: OKAY. MOVING FORWARD TO COUNCILMEMBER COMMENTS AND QUESTIONS. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, MADAM MAYOR AND CHAIR BLACKABY AND THE I WANT TO COMMEND THE POLICE CHIEF AND DEPARTMENT FOR YOUR PROFESSIONALISM, ACCOUNTABILITY MEASURES. I WANT TO THANK THE PAB. AND CITY MANAGER AND CITY ATTORNEY FOR RETAINING A THIRD-PARTY FIRM FOR CONDUCTING THE INVESTIGATION. I JUST HAVE THREE, HOPEFULLY QUICK QUESTIONS. THE QUESTION UNDER INVESTIGATION WAS

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WHETHER OR NOT, THE CITY MAINTAINS A POLICY ENABLING THE PRACTICE OF ARREST QUOTAS, CORRECT? THAT WAS WHAT YOU WERE INVESTIGATING WHETHER OR NOT THE CITY HAS A POLICY OF ENABLING?

>> I THINK WHAT THE INVESTIGATION WAS LOOKING INTO WAS WHETHER OR NOT THERE WAS A PRACTICE THAT OCCURRED OF ARREST QUOTAS. AND IF I COULD MAKE A CLARIFYING POINT ABOUT THAT, THE LANGUAGE THAT CHAIR KAITANO REFERRED TO IS THE VEHICLE CODE LANGUAGE THAT PROHIBITS ARREST QUOTAS FOR ALL ARRESTS. SO IT'S NOT LIMIT TODAY VEHICLE CODE VIOLATIONS, THAT'S THE STATE LAW THAT GUIDES US AND PROHIBITS OFFICERS FROM MAKING ARRESTS AND FACED WITH A QUOTA. THE LANGUAGE HE READ ABOUT IT CAN'T AFFECT YOUR ABILITY TO PROMOTE AND DECISIONS LIKE THAT, THAT'S FROM THE VEHICLE CODE POLICY. SO THAT LANGUAGE DOES EXIST. AND OUR OFFICERS ARE BOUND TO FOLLOW BOTH VEHICLE CODE AND PENAL CODES AS STANDARDS OF CONDUCT.

>> T. TAPLIN: THANK YOU VERY MUCH. COULD THE CITY MANAGER, OR PERHAPS CITY CLERK CLARIFY THE PROCESS FOR SOME OF OUR COMPANION REPORTS?

>> MAYOR ISHII: SORRY, WHAT?

>> T. TAPLIN: THE PROCESS FOR SUBMITTING A COMPANION REPORT?

>> CITY CLERK: SURE. A COMPANION REPORT IS SORT OF A SEPARATE AND DISTINCT REPORT FROM THE COMMISSION WRITES THEIR REPORT AND THAT'S AGENDIZED AND THEN CITY MANAGER COMPANION REPORT IS A

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SEPARATE AND DISTINCT STAFF REPORT THAT IS WRITTEN, SUCH THAT ITS OWN AGENDA ITEM, THAT IS THEN PAIRED AS AN A AND B ITEM WITH THE COMMISSION'S REPORT.

>> T. TAPLIN: SO IN ORDER TO SUBMIT ADDITIONAL RECOMMENDATIONS, IT WOULD NEED TO HAPPEN UNDER THOSE CIRCUMSTANCES RATHER THAN BEING APPENDED AS ATTACHMENTS TO A STAFF REPORT?

>> CITY CLERK: RIGHT. THE COUNCIL IS SOMEWHAT LIMITED IN THE ACTIONS IT COULD TAKE, BASED ON HOW ITEMS ARE AGENDIZED AND NOTICED TO THE PUBLIC. SO, YES. THE COUNCIL CAN DISCUSS INFORMATION THAT'S IN REPORTS AND ATTACHMENTS THAT'S IN REPORTS. IT COULD REFER INFORMATION TO THE CITY MANAGER, IF IT SO CHOSE. YOU KNOW, IT COULD TAKE OTHER SORT OF ACTIONS AND DISCUSSION ABOUT INFORMATION THAT'S IN A REPORT OR ATTACHMENT. IF IT WAS GOING TO FORMALLY ADOPT CERTAIN RECOMMENDATIONS, THOSE WOULD NEED TO BE LISTED ON THE AGENDA, SO THAT THERE WAS PUBLIC NOTICE OF THOSE POTENTIAL ACTIONS.

>> T. TAPLIN: THANK YOU. MY FINAL QUESTION. SO HOW DOES THE MEETING CONFER AROUND REGULATIONS COMPLETED OR IS THAT STILL UNDER WAY?

>> IT'S STILL UNDER WAY.

>> THAT IS STILL UNDER WAY.

>> T. TAPLIN: THANK YOU. THOSE ARE MY QUESTIONS.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER TREGUB?

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>> I. TREGUB: THANK YOU SO MUCH. IT WAS MY INTENT IN PULLING THIS TO ACTION TO HAVE AN OPPORTUNITY TO HEAR MORE FROM THE VARIOUS STAKEHOLDERS AND GIVE OPPORTUNITY FOR THE PUBLIC TO WEIGH IN AS WELL. FIRST OF ALL, I WANT TO SAY THAT I PERSONALLY, WHAT I HAVE WITNESSED BOTH AS A COUNCILMEMBER AND PRIOR TO WAS NOTHING BUT COMPLETE AND FULL PROFESSIONALISM ON THE PART OF EVERY MEMBER OF BPD, WITH WHOM I'VE INTERACTED. I ALSO ACKNOWLEDGE THAT'S MY OWN EXPERIENCE AND EVERYONE HAS THEIR DIFFERENT EXPERIENCES. AND I SUPPORTED THE POLICE ACCOUNTABILITY BOARD THROUGH MEASURE II SO THAT THERE WOULD BE A STRONG SYSTEM OF ACCOUNTABILITY. AND I REALLY -- THE TEXT SCANDAL IS SOMETHING THAT I THINK ALL OF US IN THIS ROOM CAN AGREE SHOULD NOT AND DOES NOT REPRESENT THE DEPARTMENT. AND I APPRECIATE THE WORK OF THE PAB TO DO ANALYSIS AND SURFACE SOME OF THE UNDERLYING SITUATION AND MAKE RECOMMENDATIONS. AND I ALSO APPRECIATE COUNCILMEMBER BLACKABY'S EFFORT TO TRY TO PUT SOME OF THE RECOMMENDATIONS IN HIS, RECOMMENDATIONS FROM THE PAB IN HIS ITEM. IT'S WITH THAT IN MIND THAT I HAVE THREE QUESTIONS. ONE IS FOR THE PAB. WHAT ARE THE RECOMMENDATIONS, OR OTHER AREAS WHERE, IN YOUR VIEW, 11 A AND 11 B DIFFER? FOR THE POLICE CHIEF, WHAT IS THE SCOPE AND TIMELINE OF THE MEET AND CONFER PROCESS? IF YOU HAVE AN ESTIMATE OF WHEN THERE MIGHT BE A RESOLUTION TO IT. AND WHEN THAT HAPPENS, WHAT MIGHT BE THE MECHANISM BY WHICH THE

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COUNCIL COULD BE INFORMED OF THAT. THIRDLY AND THIS IS FOR COUNCILMEMBER BLACKABY, AND I APPRECIATE THE INTENT OF YOUR ITEM, IS THERE ANYTHING ELSE YOU FEEL COULD BE ADDED TO YOUR ITEM TO ENSURE THE CONTINUITY OF ONGOING ACCOUNTABILITY MEASURES?

>> I DON'T KNOW HOW THIS THING WORKS, SO SORRY. SINCE THE FIRST QUESTION WAS ADDRESSED TO US, IF I MAY. FIRST, THANKS TO COUNCILMEMBER BLACKABY FOR THIS RESOLUTION. I FULLY AGREE THE INTENT OF IT WAS TO ALIGN, AS BEST AS IT COULD WITH OUR RECOMMENDATIONS. AND WE WILL, GOING FORWARD, BE DILIGENT IN MAKING RECOMMENDATIONS FOR COUNCIL THAT ARE ACTIONABLE AND THEN WE ALSO EXPECT COUNCIL TO ACT ON THEM. IN TERMS OF THE SEPARATION BETWEEN THE TWO, I JUST WANTED TO HIGHLIGHT FOR COUNCIL THE ONE THING THAT I'VE DISCUSSED, WHICH IS THE RESOLUTION THAT COUNCILMEMBER BLACKABY PUTS FORWARD SAYS IT SUPPORTS BPD'S EXISTING PRACTICE AGAINST USING ARREST QUOTAS BUT ALSO SAYS IT AFFIRMS ITS STRONG OPPOSITION TO ARREST QUOTAS. THOSE CAN'T EXIST IN THE SAME SENTENCE; BERKELEY NEEDS A POLICY AGAINST ARREST QUOTAS WRITTEN IN THE POLICY. IT'S NOT ENOUGH TO SAY WE'RE NOT DOING THAT. THAT'S THE GAP BETWEEN THE TWO AND THAT'S THE ONE I WANTED TO HIGHLIGHT FOR YOU.

>> MAYOR ISHII: I THINK THE NEXT QUESTION WAS TO THE CHIEF. DO YOU FEEL IT MAKES SENSE FOR YOU TO RESPOND TO THIS?

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>> I'M HAPPY TO ANSWER THE COUNCILMEMBER'S QUESTION. THE MEET AND CONFER IS ONGOING, I KNOW THE GOAL IS TO BE DONE WITHIN THE NEXT COUPLE MONTHS. AFTER IT'S COMPLETED IT MR. BE AN ABSOLUTELY PUBLIC DOCUMENT. I'M LOOKING FORWARD TO THOSE REGULATIONS BEING COMPLETED, I THINK WE ALL ARE SO WE CAN MOVE FORWARD AND REBUILD THE RELATIONSHIPS AND COLLABORATION.

>> B. BLACKABY: COOL. AND FOR MY PART, I WILL JUST SAY THERE WAS NOT AN ASK FOR US TO ADOPT A POLICY TO BAN ARREST QUOTAS. I DO NOT SEE THAT IN ANY OF THE FOUR RECOMMENDATIONS. BY THE WAY, I AGREE WITH THAT. WHAT I SAID EARLIER IS, THERE'S AN EXISTING PROCESS BETWEEN THE PAB AND BPD TO WORK THAT OUT, MY UNDERSTANDING. THERE'S A POLICY OR REVIEW PROCESS. ANYWAY, I WOULD JUST SAY THAT MAY BE A GAP. BUT IT'S NOT A GAP BETWEEN OUR RESOLUTION AND THE RECOMMENDATIONS, BECAUSE IT'S NOT IN THE RECOMMENDATIONS, AT LEAST IN THESE FOUR I SEE IN THE STAFF REPORT.

>> MAYOR ISHII: IF I MAY, BECAUSE I KNOW YOU ASKED THESE QUESTIONS, BUT I THINK THERE'S SOME DISAGREEMENT ABOUT ARREST QUOTAS AND IF THIS VEHICLE CODE COVERS ALL ARREST QUOTAS. SO I HAVE ASKED OUR CITY ATTORNEY IF HER STAFF COULD SPEAK TO THIS ISSUE. I FEEL THAT KIND OF GETS TO THE CRUX OF WHAT WE ARE DISCUSSING, IF THAT'S OKAY WITH YOU, COUNCILMEMBER?

>> I. TREGUB: THANK YOU.

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>> MAYOR ISHII: I WILL PASS IT OVER TO OUR CITY ATTORNEY.

>> MADAM MAYOR, IT'S GOING TO TAKE A FEW MINUTES. BREN DOES NOT HAVE A PANELIST LINK, SO WE ARE TRYING --

>> MAYOR ISHII: SURE. WHILE WE WORK OUT THE ZOOM BIT, IF THERE'S ANYTHING YOU WANT TO SAY, COUNCILMEMBER TREGUB?

>> I. TREGUB: I AGREE THAT PERHAPS THE ONE AREA I HAVE OBSERVED JUST LISTENING TO ALL OF YOU, WHERE THERE MAY BE JUST A DIFFERENCE OF POSITION IS ON WHAT IS COVERED BY, YOU KNOW, THE EXTENT TO WHICH AN ARREST QUOTA POLICY APPLIES NOW AND WHAT IT SHOULD COVER. I'M READY TO SUPPORT SOMETHING TONIGHT WITH TEETH AND I THINK PERSONALLY, IT'S MY BELIEF THAT COUNCILMEMBER'S BLACKABY'S ITEM DID A GOOD-FAITH ATTEMPT TO COVER THE RECOMMENDATIONS, THAT AT LEAST I SAW IN THE PAB REPORT. SO IF THERE'S AN OPPORTUNITY TO MAYBE STRENGTHEN LANGUAGE AROUND ARREST QUOTAS, SOUNDS LIKE WE ARE ALL IN AGREEMENT. I'M GOING TO SPEAK FOR MYSELF. THAT ARREST QUOTAS, THE PRESENCE OF THEM IS NOT SOMETHING THAT IS IN TUNE WITH BERKELEY VALUES. AND YOU KNOW, I WOULD SUPPORT 11 B WITH THE POSSIBILITY OF ADDING THAT ONE BIT, IF THAT IS SOMETHING THAT WE'RE ABLE TO DO TONIGHT. KIND OF IN HONORING THE MEET AND CONFER PROCESS IS ALSO ONGOING.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. I THINK WE MAY HAVE OUR REPRESENTATIVE FROM THE CITY ATTORNEY'S OFFICE.

>> I APOLOGIZE FOR BEING ON THE PHONE.

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>> MAYOR ISHII: NO WORRIES, THANK YOU FOR BEING HERE. IF YOU COULD ANSWER THE QUESTION, WOULD YOU LIKE ME TO REPEAT IT?

>> YEAH.

>> MAYOR ISHII: WE WERE TALKING ABOUT THE CALIFORNIA CODE THAT COVERS ARREST QUOTAS, WE WOULD LIKE TO KNOW IF THAT COVERS ARREST QUOTAS GENERALLY, OR JUST FOR VEHICLE VIOLATIONS, I BELIEVE THAT'S THE QUESTION.

>> THAT'S CORRECT. THAT IT'S NARROWLY APPLICABLE TO TICKETS AND VEHICLE CODE VIOLATIONS. SO, YOU KNOW, THE PROPOSAL BY COUNCILMEMBER BLACKABY TO, OR EXCUSE ME, BY THE PAB TO ASK THE LEGISLATURE TO EXPAND THE SCOPE WOULD BE A CHANGE TO THE EXISTING LAW. WHICH CURRENTLY, SPECIFICALLY APPLIES TO THIS TYPE OF SITUATION WHERE SOMEONE GOES OUTLOOKING FOR ADDITIONAL SPEEDING TICKETS OR OTHER MOVING VIOLATIONS, THAT KIND OF THING.

>> MAYOR ISHII: THANK YOU VERY MUCH FOR THE CLARIFICATION. FOR THE PERSON IN THE AUDIENCE, I WANT TO MAKE SURE YOU UNDERSTAND, IT'S PERFECTLY APPROPRIATE FOR US TO CHECK WITH OUR ATTORNEYS TO ENSURE THAT WHEN THERE'S A DISAGREEMENT BETWEEN TWO FOLKS THAT ARE HERE, THAT WE UNDERSTAND THE LAW. ESPECIALLY SINCE NOT ALL OF US ARE ATTORNEYS, NOR ARE SOME OF US, SOME OF US ARE LAWYERS AND PRACTICING ATTORNEYS BUT NOT EVERYONE. SO I JUST THINK THAT'S PERFECTLY APPROPRIATE, I WOULD ASK YOU KEEP YOUR COMMENTS TO YOURSELF AND BE RESPECTFUL OF THE PROCESS HERE. GO AHEAD,

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CHIEF.

>> IF I COULD JUST COMMENT ON THAT AND I COULD SHARE FROM A PRACTICAL STANDPOINT, THE INTERPRETATION THAT LAW ENFORCEMENT TAKES IN THE STATE OF CALIFORNIA, THAT PROHIBITION PROHIBITS US FROM MAKING ARREST QUOTAS FOR ANY PURPOSE. WE READ ARREST CITATION, AS ARREST OR CITATION, SO THAT BROADER LANGUAGE. WE MAKE OUR ARREST ON PROBABLY CAUSE. WE DON'T PRACTICE CREATING IMPLICIT, OR EXPLICIT ARREST QUOTAS. IT WOULD BE ACCURATE TO SAY THE STATE HASN'T COME OUT IN THE PENAL CODE SECTION AND SAID SPECIFICALLY ABOUT ARREST QUOTAS IN THAT. SINCE I'VE BEEN HERE DOING THIS WORK FOR 26 YEARS, THE UNDERSTOOD IMPLICATION OF THAT LANGUAGE IN THE VEHICLE CODE.

>> MAYOR ISHII: THANK YOU, CHIEF. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: YES, THANK YOU. JUST SHORTLY, I MEAN I HAVE VERY BRIEF COMMENTS. I'M NOT GOING TO VOTE -- I'M GOING TO VOTE AGAINST 11 A. IT'S PARTIALLY REPETITIVE OF 11 B. RECOMMENDATIONS TO CONTAINED WITHIN 11 B SUBMITTED BY COUNCILMEMBER BLACKABY. RECOMMENDATION #1, IN 11-A IS NOT APPROPRIATE, AS WE HAVE BEEN DISCUSSING FOR PASSAGE AS IT RELATES TO AN ISSUE THAT IS CURRENTLY SUBJECT TO MEET AND CONFER. RECOMMENDATION #3 IS REDUNDANT. BPD ALREADY HAS A TRANSPARENCY WEBSITE. ALL THIS INFORMATION IS SUBJECT TO PUBLIC RECORD REQUESTS. AND THERE'S NO NEED TO BUILD AN ENTIRELY NEW WEBSITE, SUCH AS THE PAB ASKS FOR

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AND DESCRIBES. SO I WILL BE VOTING NO ON 11 A AND YES ON 11 B. AND THANK YOU, COUNCILMEMBER BLACKABY FOR BRINGING 11 B FORWARD TO ADDRESS TWO OF THE LARGEST ISSUES, I THINK. WE ALL STAND UNITED AGAINST RACISM AND MISCONDUCT. AND I PERSONALLY SUPPORT ASKING THE STATE LEGISLATOR TO CLARIFY AND EXTEND THE PROHIBITION ON ARREST QUOTAS EVEN THOUGH OUR DEPARTMENT AND OTHER DEPARTMENTS UNDERSTAND THAT BINDS THEM, GENERALLY. THANK YOU.

>> MAYOR ISHII: COUNCILMEMBER, JUST TO CLARIFY. THIS ITEM 11 A HAS A NEGATIVE RECOMMENDATION FROM THE COMMITTEE. AND SO YOU SAID YOU ARE VOTING AGAINST IT. BUT DO YOU MEAN YOU ARE SUPPORTING THE NEGATIVE --

>> M. HUMBERT: I'M SUPPORTING THE NEGATIVE. THANK YOU.

>> MAYOR ISHII: COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU. I HAVE MADE MY, I THINK, COMMENTS KNOWN. SO MY MOTION IS TO, TWO-PART MOTION. ONE IS TO ACCEPT THE PAB REPORT WITH OUR THANKS ON THE DOWNTOWN TASK FORCE INVESTIGATION. AND PART 2 IS THEN TO ADOPT OUR RESOLUTION IN 11 B.

>> R. KESARWANI: SECOND.

>> MAYOR ISHII: COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. I WANT TO THANK THE PARTIES AND THE PAB AND THE REPORT, AND YOUR DILIGENCE. I SERVED ON THIS BODY

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YEARS AGO. BEFORE I WAS A COUNCILMEMBER. THIS TEXT GATE WAS A HORRIFIC STAIN. I WON'T GO INTO THAT TOO DEEPLY, COVERED THAT IN ONE MEETING, YOU MAY REMEMBER, VERY THOROUGHLY. BUT I WILL SAY, YOU KNOW, PEOPLE DO WHAT YOU INSPECT, NOT WHAT YOU EXPECT. AND THAT'S A MAXIM. PARTICULARLY WHEN YOU ARE DEALING WITH MARSHAL POWER, AND PERSONS. WHAT WE SEE IN WASHINGTON, OBVIOUSLY IS PLAYING OUT BEFORE OUR EYES. REMANDING PEOPLE WITHOUT PROCESS. TROUBLING SIGNS COMING FROM THE EAST COAST RIGHT NOW. BUT WE KNOW FROM OUR OWN DATA, WHICH WE SAW LAST WEEK, WAS IT LAST WEEK OR THE WEEK BEFORE? WE SAW OUR CRIME REPORT AND POLICE REPORT AND THE RESULTS HERE WERE REALLY POSITIVE. THEY WERE REALLY GROUNDBREAKING. AND I SPOKE ABOUT THEM RECENTLY AT AN EVENT I WAS AT WITH SOME NATIONAL PERSONS. OUR ARREST DATA. USE OF FORCE DATA. OUR YIELD RATES ALL INDICATED THAT OUR EFFORTS AND YOUR EFFORTS IN PARTICULAR, YOUR EFFORTS, CHIEF AND HANSEN EVERYONE AND THE COMMUNITY. THE EFFORTS. REALLY APPLYING A DEEP CONSTITUTIONAL FRAMEWORK TO POLICING IS BEARING FRUIT. AND THAT THIS ASPECT OF EXPECTING THE BEST AND THEN GIVING OUR PERSONS THE TOOLS TO DELIVER THE BEST AREN'T BEARING FRUIT. IT APPEARED TO BE VERY RACIALLY BALANCED AND VERY FAIR ACROSS-THE-BOARD. SO IT'S INDICATIVE THERE'S NOT A QUOTA. UNLESS THERE'S A QUOTA OF WHITE PEOPLE AND ASIAN PEOPLE. [LAUGHTER] ONLY I WOULD FIND THAT FUNNY. I'M CURIOUS ABOUT THIS DISTINCTION BETWEEN THE VEHICLE

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CODE CLARIFYING QUOTAS. IT SEEMS AS IF MY COLLEAGUES 11 B MOTION, MR. BLACKABY'S MOTION APPEARS TO SORT OF TAKE THE ACTIONABLE COMPONENTS OUT OF YOUR PROPOSAL AND SORT OF FILTER OUT THE ONES THAT NEED MORE WORK, DUE TO A MEET AND CONFER PROCESS WITH THE UNION. OR A BUTT AGAINST STATE LAW. AND I THINK IT CAPTURES THE ESSENCE OF WHAT WE CAN DO. AND YOU KNOW, I ALSO LOOK FORWARD TO SEEING WHAT HAPPENS WHEN YOU COMPLETE YOUR A.R.'S AND DO THE WORK YOU NEED TO DO TO COME BACK TO US WITH THAT. THAT JOURNEY. SO I WILL BE SUPPORTING MR. BLACKABY'S MEASURE, I THINK IT'S REALLY WELL DONE. IT'S IN A FINE FRAMING AROUND THE SPIRIT AT PLAY HERE. BUT I LOOK FORWARD TO LEARNING MORE ABOUT THIS DISTINCTION BETWEEN THE STATE VEHICLE CODE AND OUR COMMON PRACTICE. BUT AGAIN, NOTING THAT YOU KNOW, THE EVIDENCE WE SAW, THE PRACTICE IS BEARING FRUIT. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I WHOLEHEARTEDLY BELIEVE THAT ITEM 11 B WAS A GOOD FAITH ATTEMPT AT ADDRESSING ITEM 11 A. AND I'M ALSO CONCERNED THAT IT IS TAKING AWAY THE TEETH OF WHAT THE PAB WAS HOPING TO GO. AND I'M CONCERNED THAT, AND I THINK THAT THIS CONCERN ECHOES WHAT A LOT OF COMMUNITY MEMBERS SAID HERE TONIGHT AND WHAT A LOT OF COMMUNITY MEMBERS WHO AREN'T HERE FEEL, THAT THE SECOND WHEREAS CLAUSE THAT REFERENCES TO OUR COMMUNITIES

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FULL FAITH AND CONFIDENCE IN THE BERKELEY POLICE DEPARTMENT CONVEYS THAT, EVEN THOUGH THE POLICE -- SOME POLICE OFFICERS COMMITTED ALLEGATIONS OF RACISM AND CLASSISM. [INDISCERNIBLE] GIVEN THAT SOME ARE STILL PART OF OUR POLICE DEPARTMENT. THIS ISN'T TO SAY THAT I DON'T THINK WE SHOULD STATE THAT WE HAVE FULL CONFIDENCE IN THEM TO DO BETTER. BUT I THINK THIS, AS IT IS RIGHT NOW, SENDS A BAD MESSAGE TO THOSE DIRECTLY IMPACTED BY THIS BAD BEHAVIOR. WE HAVE A BOARD OF EXPERTS WHO HAVE MADE TIRELESSLY TO MAKE RECOMMENDATIONS HOW WE CAN HOLD OUR P.D. ACCOUNTABLE. I KNOW THIS TRIES TO, BUT. I AM WONDERING IF WE CAN ADD A FRIENDLY AMENDMENT TO THE MOTION TO ALSO, TO ADD A REFERRAL TO SEND THE ITEM BACK TO THE POLICE ACCOUNTABILITY BOARD, OR AT LEAST, TO REFER TO THE POLICE ACCOUNTABILITY BOARD TO DEVELOP SPECIFIC REQUESTS RELATED TO THE PUBLIC REPOSITORY OF DATA. TO HAVE THEM COME UP WITH LANGUAGE, BECAUSE WE DON'T HAVE THE LANGUAGE HERE RIGHT NOW. THAT THEN WE CAN CONSIDER. SEPARATELY.

>> B. BLACKABY: I APPRECIATE THE QUESTION, I'M NOT INCLINED ONLY BECAUSE, I THINK WE SHOULD DO THAT WORK. I THINK THAT WORK SHOULD HAPPEN ANYWAY. IT'S NOT CLEAR TO ME THAT I'M NOT A LAWYER, BUT AS I WAS READING THE STATUTE, WHICH REQUIRES PUBLIC RECORDS ACT REQUESTS AND THOSE RECORDS BE AVAILABLE UPON DEMAND UNDER A P.R.A. REQUEST, WHETHER THAT'S DIFFERENT THAN THE IDEA

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OF HAVING AN ON-DEMAND REPOSITORY, I DON'T KNOW. SO I HAVE SOME QUESTION AS TO WHETHER WE COULD EVEN DO THAT. I'M FULLY SUPPORTIVE OF HAVING THAT MOVE FORWARD AND HAVING PEOPLE LOOK AT THAT AND THINK ABOUT IT. I JUST DON'T KNOW, I DON'T SUPPORT NECESSARILY MAKING IT PART OF THIS ITEM BECAUSE I JUST DON'T FEEL IT'S READY TO BE DONE. I UNDERSTAND WHAT YOU ARE ASKING.

>> MAYOR ISHII: CAN I ASK A CLARIFYING QUESTION. JUST BECAUSE WE, IF WE VOTE TO APPROVE A NEGATIVE RECOMMENDATION, DOES THAT MEAN THAT THEY CAN'T STILL DO SOME WORK ON SOMETHING AND BRING IT BACK LATER? I JUST WANT TO CLARIFY. YES, THEY COULD. I JUST WANT TO MAKE SURE THAT'S CLEAR.

>> B. BLACKABY: BY THE WAY, ANY DISCUSSION TO COUNCILMEMBER TREGUB'S POINT ABOUT LANGUAGE AROUND THE ARREST QUOTA POLICY. I DON'T FEEL COMFORTABLE DOING THAT FROM THE DAIS BECAUSE I KNOW THE WAY THE POLICIES ARE CONSTRUCTED; THERE'S A LOT OF WORK THAT GOES INTO IT. FOR A SIMILAR REASON. I WOULDN'T SUPPORT THAT EITHER BECAUSE THAT TAKES MORE WORK AND THEY HAVE AN EXISTING PROCESS TO DO THAT.

>> C. LUNAPARRA: I AM CONCERNED THAT PASSING A RESOLUTION SAYING THAT WE TRUST THE PAB AND ODPA IS NOT TRUSTING THE PAB AND ODPA AND PASSING A RESOLUTION SAYING WE SUPPORT THEM WITHOUT PROVIDING THEM THE DATA AND RESOURCES THEY NEED IS NOT SUPPORTING THEM. I KNOW SOME OF THESE ARE IN THE WORKS THROUGH

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THE MEET AND CONFER PROCESS AND I HOPE WE COULD CONTINUE TO WORK COLLABORATIVELY TO ENSURE MATERIAL SUPPORT FOR ALL OF OUR INSTITUTION THAT'S SERVE AND PROTECT OUR COMMUNITY. THANKS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, I WANTED TO SAY BRIEFLY, I WANT TO THANK MY COLLEAGUES AND THE PAB DIRECTOR AND CHIEF, AND EVERYONE HERE FOR ANOTHER NIGHT OF CIVIL, THOUGHTFUL DISCOURSE. THIS IS A VERY COMPLICATED TOPIC. IT'S NOT OVER TONIGHT. I JUST WANT TO SAY THAT SOMETIMES IT COULD BE FRUSTRATING WHEN WE HAVE AN OUTCOME WE WANT TO SEE HAPPEN. AND SOMETIMES IT TAKES TIME, OR SOMETIMES THE OUTCOME IS DIFFERENT BECAUSE OF THE NUMBER OF PEOPLE INVOLVED. SO I WANT TO THANK EVERYONE FOR THEIR PATIENCE WITH THIS PROCESS. AND I AM PREPARED TO SUPPORT THE MOTION.

>> MAYOR ISHII: THANK YOU. I HAVE SOME COMMENTS AS WELL. JUST LIKE EVERYONE ELSE DID, I ALSO WANT TO THANK YOU ALL FOR YOUR WORK HERE. AND I WANT TO SAY THAT I ALSO FOUND THIS TO BE VERY FRUSTRATING, BECAUSE AS YOU MENTIONED, I THINK THERE ARE SOME IDEAS THAT WE HAVE, SOME OF US HAVE ABOUT WHAT WE WANT TO SEE. AND WHEN THERE'S AN ITEM IN FRONT OF US, THIS IS WHAT WE VOTE ON. EVEN IF WE AGREE ABOUT CERTAIN THINGS MENTIONED IN THE PRESENTATION, IF THAT’S NOT WHAT WE ARE VOTING ON THIS EVENING, THAT'S NOT SOMETHING WE CAN SUPPORT OR OPPOSE. IT'S NOT EVEN BEFORE US. I KNOW THERE WERE A LOT OF MISCOMMUNICATIONS ABOUT

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HOW THIS CAME, IF IT WAS A COMPANION REPORT AND WHAT NEEDS TO GO AND BE IN THIS ACTUAL ITEM. I WANT TO BE SURE IT'S CLEAR FROM THIS EVENING TO BOTH ODPA AND PAB, WHAT NEEDS TO HAPPEN IN THE FUTURE. IF THERE'S SOMETHING SPECIFIC YOU WOULD LIKE US TO VOTE ON. I HEARD COMMENTS ABOUT ARREST QUOTAS AND APOLOGY, NEITHER OF WHICH ARE ITEM 11 A, SPECIFICALLY, WE ARE VOTING ON. I WANT TO SPEAK TO THIS BIT ABOUT RESOURCES TO DO YOUR INVESTIGATIONS, NOT IN HERE. I THINK IN THE PAST SOME CONVERSATION HAS BEEN AROUND WHAT INFORMATION IS BEING REQUESTED. AND AS MAYOR, I WANT TO MAINTAIN THE COMMUNITY'S TRUST IN BOTH THE ODPA, PAB AND BPD. I THINK THAT'S REALLY IMPORTANT. AND I ACTUALLY REALLY APPRECIATE THAT YOU ALL ARE SITTING THERE TOGETHER AND ALIGNED BECAUSE WE ARE ONE CITY AND IT'S IMPORTANT THAT OUR WORK IS SEEN TOGETHER. I ALSO WANT TO ACKNOWLEDGE THAT IT'S BEEN DIFFICULT IN MOVING FORWARD TOGETHER. OBVIOUSLY, THERE'S SOME TENSION HERE AND I WANT TO REALLY CALL THAT OUT AND SAY I THINK IT'S IMPORTANT THAT WE ARE MOVING FORWARD TOGETHER. I WANT TO HIGHLIGHT THAT BOTH OFFICES HAVE THE SHARED GOALS OF KEEPING OUR CITY SAFE. AND ENSURING THAT WE ARE ACCOUNTABLE TO THE PEOPLE. I THINK THERE WAS PLENTY OF CONTEXT GIVEN AROUND WHAT THIS MEANS NEGATIVE RECOMMENDATION. BUT TO SAY THIS DOESN'T MEAN THE PUBLIC SAFETY COMMITTEE ISN'T SUPPORTIVE OF THE WORK THE PAB IS PERFORMING. I'M NOT ON THE PUBLIC SAFETY COMMITTEE BUT I FEEL I CAN SAY THAT

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ON THEIR BEHALF. THIS CASE, AS HAS BEEN SAID, THE PUBLIC SAFETY COMMITTEE FOUND THE RECOMMENDATIONS GIVEN WERE TOO VAGUE OR GENERAL. THE INCLUSION OF ARREST QUOTAS THEY FOUND WAS REDUNDANT IN THIS PIECE, MAKING IT CHALLENGING FOR THE COMMITTEE TO SEND IT TO THE COUNCIL WITH A POSITIVE RECOMMENDATION. I DON'T WANT TO SAY, I WANT TO MAKE SURE IT'S CLEAR THIS NEGATIVE RECOMMENDATION ISN'T SAYING WE DON'T AGREE WITH PAB, OR WE DON'T VALUE YOUR WORK, BECAUSE I KNOW THAT REPORT WAS QUITE LONG. AND I I'M REALLY GRATEFUL FOR ALL THE TIME AND ENERGY THAT YOU PUT INTO PREPARING THE REPORT AND CRAFTING THE RECOMMENDATIONS AND LIKE EVERYONE ELSE HAS DONE I WANT TO STRONGLY CONDEMN RACISM, BIGOTRY AND ANY OFFICIAL OR UNOFFICIAL ARREST QUOTAS, THE TEXT MESSAGES RELEASED DURING THE COURSE OF THE INVESTIGATION WERE REALLY INAPPROPRIATE AND EMBARRASS K. I UNDERSTAND I WASN'T HERE AND A LOT OF US WEREN'T BUT WE SHOULD BE EMBARRASSED AS A CITY BY THIS TYPE OF LANGUAGE AND THERE'S NO ROOM IN THE POLICE DEPARTMENT FOR THIS TYPE OF BEHAVIOR, I KNOW THE CHIEF OF POLICE AGREES. I'M SUPPORTIVE AS IS THE CHIEF ABOUT THE EARLY WARNING SYSTEM AND TRANSPARENCY TOOLS AND HUB, WHICH WILL BRING MORE ACCOUNTABILITY AND HELP IDENTIFY ANY UNFAIR TREATMENT OR DISCRIMINATORY PRACTICES TO PREVENT THIS TYPE OF BEHAVIOR IN THE FUTURE. AGAIN, I WANT TO THANK YOU, PAB AND ODPA FOR YOUR WORK AND TO THE CHIEF FOR TRAINING AND FOR COMMUNITY MEMBERS WHO HAVE

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SPOKEN OUT IN SUPPORT OF THE PAB'S WORK AND ACCOUNTABILITY. IT'S MY SINCERE HOPE GOING FORWARD THAT BPD AND PAB WORK TOGETHER TO MAKE SURE THE POLICE DEPARTMENT IS OPERATING AT ITS BEST. THIS HAS BEEN REALLY CHALLENGING BUT I'M PREPARED TO MOVE FORWARD HERE. I BELIEVE WE HAVE A MOTION WITH BOTH 11 A AND B ON THE FLOOR. I BELIEVE THERE'S ALREADY BEEN A SECOND.

>> CITY CLERK: YES.

>> MAYOR ISHII: IF YOU COULD TAKE ROLL, PLEASE, CLERK.

>> CITY CLERK: ON THE MOTION TO ACCEPT THE PAB REPORT, EXPRESS THANKS FOR THEIR EFFORTS, AND TO ADOPT THE RESOLUTION ITEM IN 11 B, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

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>> NO.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: THANK YOU ALL. AND THANK YOU FOR YOUR PRESENTATIONS AND YOUR TIME TO BE HERE THIS EVENING. WE NOW HAVE PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA. ARE THERE ANY OTHER PUBLIC COMMENTS?

>> SO IN THE EARLIER PUBLIC COMMENT PERIOD NOT ON THE AGENDA, IT WAS MENTIONED NOW ANOTHER SEU RESPONSE AS TO WHY THEY WERE NOT COMING OUT. APPARENTLY THIS RECIPIENT OF THE CALL SAID THEY ONLY RESPOND TO HOMICIDES AND SUICIDES. AND IT WAS MENTIONED THEY DON'T GO TO ENCAMPMENTS. I KNOW I HAVE RECEIVED FRIENDS THAT HAVE SAID THEY WOULDN'T RESPOND TO SOMEONE BECAUSE THEY WERE AUTISTIC AND ONLY RESPOND TO SCHIZOPHRENICS. LAST WEEK SOMEONE TOLD ME THEY WERE TOLD THEY HAD TO CALL THE POLICE BECAUSE THEY DON'T RESPOND WHEN SOMEONE IS AGITATED. I HAVE ALSO BEEN TOLD AND KNOW OTHER PEOPLE WHO HAVE BEEN TOLD THAT THEY HAVE TO CALL TO THE POLICE FIRST, AND THE POLICE HAVE TO SCREEN THE SITUATION FIRST. THEY DON'T WANT TO RESPOND IF THERE'S ANY POSSIBILITY OF A MEDICAL ISSUE, EVEN THOUGH THEY DON'T KNOW IF IT'S A MEDICAL

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ISSUE.

>> MAYOR ISHII: CAN YOU FINISH YOUR SENTENCE, PLEASE?

>> FINISHING UP, I UNDERSTAND THE MENTAL HEALTH DIVISION OR HHCS WILL COME BACK WITH A PROPOSAL THIS BE TRIAGED THROUGH THE COUNTY CAT TEAM.

>> MAYOR ISHII: THANK YOU, I'M SORRY, YOUR TIME IS UP. CITY MANAGER, MR. CITY MANAGER, I DON'T KNOW IF WE HAVE RECORDINGS OF THOSE PHONE CALLS? I'M NOT REALLY SURE.

>> WE WILL LOOK INTO IT, I RECEIVED COUNCILMEMBER, VICE MAYOR BARTLETT'S REFERRAL FROM THE DAIS.

>> MAYOR ISHII: THANK YOU, I APPRECIATE IT.

>> HI, COUNCIL. YEAH, I JUST WANTED TO TALK ABOUT PUBLIC RECORDS REALLY FAST. WHEN I REQUESTED FOR THE RECORDS ON ANY ADDITIONAL TEXT MESSAGES, RIGHT, I HAD TO WAIT HUNDREDS OF DAYS TO GET ANY COMPETENT RESPONSE FROM THE CITY. THAT WAS BECAUSE I HAD CONNECTIONS TO THE CITY ATTORNEY'S OFFICE AND WAS ABLE TO HAVE A CONVERSATION WITH SAM HARVEY AT THE TIME. THE PROCESS DOES NOT WORK MAGICALLY BECAUSE WE HAVE PUBLIC RECORDS ACCESS. THE IDEA THE PUBLIC WILL HAVE ACCESS BECAUSE THEY CAN REQUEST, THAT'S NOT TRUE. NOT IN THIS CITY. WE HAVE TO BE HONEST ABOUT THAT. SO I HOPE THAT'S SOMETHING WE CAN AT LEAST LOOK INTO. IF YOU WANT THE PAB TO LOOK INTO IT, TELL THEM TO LOOK INTO IT, I WISH YOU WOULD HAVE REFERRED IT BACK TO THEM. YOU ALL MAKE THE DECISIONS, I

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JUST TALK. YEAH, THAT'S ALL. A LOT OF FALSEHOODS, MISGUIDED STATEMENTS, YOU SHOULD LET THE PAB RESPOND MORE, THEY ARE EXPERTS, NOT OTHER FOLKS. THANK YOU. SURE, I APPRECIATE IT KIT. GOING ON ABOUT THAT, I THINK I HEARD ONE OF THE COUNCILMEMBERS SAY ITEM 3, THAT THERE'S PUBLIC RECORDS ACT AND IT'S REDUNDANT. THAT SPECIFICALLY TALKING ABOUT A CARVE OUT THAT ALLOWS FOR PUBLIC RECORDS TO BE RELEASED WHEN THERE'S DISHONESTY, SEXUAL ASSAULT, USE OF FORCE. DEATH, SERIOUS BODILY INJURY, I THINK ALL OF US WOULD SAY WE WOULD WANT THE PUBLIC TO KNOW ABOUT THAT, BUT IT DOESN'T MAGICALLY HAPPEN. IT'S NOT REDUNDANT IN WHAT WE CURRENTLY HAVE. IT'S NOT ON THE TRANSPARENCY HUB. THAT'S NOT TRUE, IF SOMEONE WANTS TO SHOW ME THE NEW LINK, I WOULD APPRECIATE IT I WAS ON THE TASK FORCE TO WORK TO GET THE TRANSPARENCY HUB UP. THESE MEETINGS ARE QUICK. SOMETIMES YOU DON'T DIVULGE ALL THE FACTS, I WISH IN THE FUTURE YOU WILL, THIS WILL CONTINUE TO MATTER AND FOLKS WILL CONTINUE TO SPEAK OUT. BECAUSE WE WANT TO PUT NICE STATEMENTS OUT, IT DOESN'T CHANGE THE TRUTH. THANK YOU.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> ALL RIGHT, BERKELEY VALUES. I KEEP HEARING THAT USED AND THE CONTEXT IS REALLY SCARY TO ME. BECAUSE BERKELEY VALUES, AS EXPRESSED BY THE MAJORITY OF THE BERKELEY CITY COUNCIL CONDONE GENOCIDE. IT DOESN'T DO ANYTHING TO STOP IT. THE POLICE

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DEPARTMENT HERE HAS BEEN BEFORE THIS TEXT GATE SCANDAL, KNOWN AS THE MOST MORAL POLICE DEPARTMENT IN THE WORLD, IN THE HISTORY OF THE WORLD, SOMETHING SIMILAR TO THAT, SYMBOLICALLY. NOW THAT MAKES ME CONNECTED TO THE MOST MORAL ARMY IN THE WORLD. OF COURSE THE ZIONIST ARMY. WE HAVE SEEN THROUGH IN THE NEWS EVERY DAY, NO MATTER WHAT STATION YOU LOOK AT. PEOPLE HAVE BEEN KILLED WHO HAVE BEEN REPORTING TO THEM. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> I'M JESSE SHEEHAN, CHESS CLUB, I'VE ENJOYED BEING HERE THIS EVENING, A BREATH OF FRESH AIR FROM YEARS AGO COUNCIL MEETINGS. WE HAVE ZERO SQUARE FOOTAGE, THE ONLY ARE FOR THE BUS STOP. I KNOW YOU VOTED AGAINST THE DWIGHT TRIANGLE MESSAGE. THE CONVERSATIONS IN COUNCIL CHAMBER THAT'S WHAT HAPPENS IN THE PUBLIC WHEN YOU HAVE PUBLIC SPACE. PEOPLE CAN BECOME FRIENDS; THEY MIGHT DISAGREE BUT THEY HANG OUT. MANY ARE STILL MOURNING THE LOSS OF PEOPLE'S PARK. DEVASTATING. AND WE HAVE ZERO, NOT ONE FOOT OF PUBLIC SPACE IN DISTRICT 7. AND YOU GUYS VOTED AGAINST THIS YOUNG LADY'S, COUNCILMEMBER LUNAPARRA'S MEASURE. WE NEED A PARK IN DISTRICT 7, SO THAT THE TOWN AND GOWN CAN TALK, PEOPLE CAN EXPRESS THEIR DIFFERENCES IN POLITICS. SO PLEASE CONSIDER THAT GOING FORWARD.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT. OTHER PUBLIC COMMENT ON ITEMS NOT LISTED?

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>> CITY CLERK: YES, THERE'S FIVE SPEAKERS ONLINE. ANDREA PRITCHETT?

>> THANK YOU. ERIKA ANDERSEN IS YIELDING HER TIME TO ME ON ZOOM. I'M SORRY, CAN YOU HEAR ME?

>> CITY CLERK: YES, WE CAN HEAR YOU.

>> GREAT. I WANT TO SAY THIS ABOUT THAT. YOU KNOW, WHEN OFFICER SHEDOUDY BLEW THE WHISTLE THROUGH YEARS AGO, HE SAID THAT THE TEXT THAT HE RELEASED WERE MERELY THE TIP OF THE ICEBERG. THAT THEY ARE MERELY THE TIP OF THE ICEBERG, THAT THERE'S PLENTY MORE AN INSIDER COULD DIVULGE ABOUT THE OPERATIONS OF THE BERKELEY POLICE DEPARTMENT. WHEN WE ARE TALKING ABOUT ACCESS TO INFORMATION, WE AREN'T TALKING ABOUT THE PUBLIC PORTAL, THE DATA PORTAL. WE ARE TALKING ABOUT MORE SENSITIVE DOCUMENTS THAT ARE INTERNAL TO THE POLICE DEPARTMENT, THAT WILL REVEAL INVESTIGATION WHAT'S ACTUALLY GOING ON. BERKELEY COP WATCH WE FILED OUR PUBLIC RECORDS ACT REQUEST, WE NEVER GOT TO THE TEXTS. THEY NEVER SHOWED THEM TO US. I HAVE TO AGREE WITH NATHAN MIZELL, THIS CITY HAS A TRANSPARENCY PROBLEM. WE CAN KEEP COMPLEMENTING EACH OTHER, THANKING EACH OTHER FOR THE WORK, BEING SO POLITE, BUT MEANWHILE, YOU KNOW, THE REASON WHY THE SPECIAL CARE UNIT, ONE OF THE REASONS IT'S NOT WORKING IS BECAUSE THE POLICE NEVER CAME TO THE TABLE TO HAVE A SERIOUS CONVERSATION ABOUT RELINQUISHING SOME OF THEIR POWER. I THINK

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IT'S QUITE AN ILLUSION FOR YOU TO THINK YOU HAVE CONTROL OF THE POLICE DEPARTMENT. YOU DON'T. THEY ARE IN CONTROL. LOOK AT THE BUDGET. THEY ARE THE ONES RUNNING THIS CITY. QUITE FRANKLY. AND I'LL BE INTERESTED TO SEE HOW AUTHENTIC AN INVESTIGATION THEY CONDUCT, THE PAB IS ALLOWED TO CONDUCT AND HOW MUCH ACCESS TO INFORMATION THEY HAVE RELATIVE WILL THE SHOOTING ON SUNDAY, RICARDO G. RUIZ IS ALSO THE GUY WHO PEPPER SPRAYED --

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS MATI TEIBLUM.

>> CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> I WAS THERE EARLIER TONIGHT. AND I SAID THAT ANTI ZIONISM IS NOT A POLITICAL OPINION, IT'S A FORM OF HATE THAT'S DEDICATED AND RESERVED ONLY TO JEWS, AGAINST JEWS. SOME COMMUNITY MEMBERS SAID IT'S AN IDEOLOGY, THAT ANTI ZIONISM IS AN IDEOLOGY, SO WAS NAZIISM. IT'S AN IDEOLOGY, HOLOCAUST HAPPENED AFTER. ANTI ZIONISM, THIS IDEA THAT THE JEWS AND ONLY THE JEWS ARE NOT ENTITLED, ARE NOT, CANNOT BENEFIT FROM THE RIGHT THAT IS SERVED FOR ANY OTHER PEOPLE, THAT'S A FORM OF HATE. AND YOU ARE ALLOWING IT IN YOUR ROOM.

>> CITY CLERK: OKAY, THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> NEXT IS CALLER ENDING IN 000.

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>> WE HAVE CONCERN ABOUT [OFF MIC] THIS FASCIST GOVERNMENT OF DONALD TRUMP, DESTROYING THIS COUNTRY. THERE'S WAR, UNIVERSITY, EDUCATION, HEALTH CARE AND EVERYTHING ELSE. WHAT CAN WE DO, WE ARE LIVING IN ONE OF THE DARKEST AGE, I NEVER EXPECTED TO LIVE LONG ENOUGH AT 84 YEARS OLD. SEE THIS BEAUTIFUL COUNTRY GETTING DESTROYED, USING FALSE ANTI-SEMITISM GARBAGE. LANGUAGE. IT HAS NO MEANING WHATSOEVER. [INDISCERNIBLE] SONG, "IMAGINE" BY JOHN LENNON. NO COUNTRY, NO RELIGION TOO. HOW ADVANCED WOULD IT BE TODAY? WE WOULDN'T HAVE CRAZY WARS FOR THE LAST CENTURY. THANK YOU VERY MUCH AND HAVE A BEAUTIFUL EVENING.

>> CITY CLERK: NEXT IS THE BERKELEY SCANNER.

>> HELLO, SORRY, I COULDN'T BE THERE TONIGHT, I HAVE AN EARLY FLIGHT. THIS IS SO MINOR GIVEN ALL THE MANY THINGS YOU GUYS HAVE BEEN GRAPPLING WITH. THIS WAS JUST MAYBE A ROBERTS RULES SITUATION, OR SOMEBODY ELSE CAN CORRECT ME. BUT THERE'S SOMETIMES DURING THE CONSENT CALENDAR WHERE SOMEONE MIGHT SAY I'M MOVING ITEM #3 TO ACTION. AND I THINK ROBERTS RULES SAYS SOMETHING ABOUT SAYING WHAT THE ITEM IS. AND I JUST NOTICED WITH THE NEW COUNCIL, NOT EVERYONE IS DOING IT. IT JUST HELPS THE PUBLIC FOLLOW ALONG WHICH ITEMS ARE ACTUALLY MOVING. I JUST WANT TO NOTE THAT. AND THEN I DID THINK THIS WAS ITEMS NOT ON THE AGENDA, BUT I FEEL I DID HEAR SOME COMMENTS EARLIER ABOUT AGENDA ITEMS IN THIS PUBLIC COMMENT PERIOD. ANYWAY, THANKS A LOT. HAVE

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A GREAT NIGHT, AND I WILL SEE YOU GUYS IN THE NEXT COUPLE OF WEEKS.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> ANTI-SEMITISM -- IS ANTI ZIONISM IS NOT ANTI-SEMITISM. AND YOU CAN'T EQUATE THE TWO THINGS. IT'S REALLY UNFAIR, UNJUST. AND ZIONISTS AREN'T ALL JEWS, SOME ARE CATHOLIC. YOU KNOW, WE DON'T KNOW WHAT THEY ARE, THERE'S A COMBINATION OF FOLKS. BUT BEING ANTI ZIONIST AND AGAINST GENOCIDE AND AGAINST ETHNIC CLEANSING AND AGAINST STARVATION, AGAINST KILLING JOURNALISTS AND MEDICAL PERSONNEL, DOCTORS, NURSES, AMBULANCE DRIVERS. IT'S JUST REALLY SAD THAT YOU AS A COUNCIL DON'T APPRECIATE HUMANITY. HUMANITY OF CHILDREN, OF PARENTS, OF MEN, WOMEN, GRANDPARENTS, AUNTS. SOME OF YOU HAVE CHILDREN AND YOU ARE ALLOWING, OR NOT --

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. YOUR TIME IS UP.

>> CITY CLERK: NEXT IS MARIA SOL.

>> MAYOR ISHII: IS THIS OUR LAST COMMENT? THANK YOU.

>> AGAIN, BRAVA, ALL OF US.

>> I'M UNMUTED AGAIN.

>> I'M SORRY, THERE WE ARE.

>> MAYOR ISHII: MARIA, GO AHEAD. YOU CAN START OVER.

>> THANK YOU. I'M JUST IMPRESSED WE ARE ALL STILL HERE AND

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AWAKE. IT'S BECAUSE WE CARE. AND I'M SO GRATEFUL. I REALLY AM. BUT I REALLY WANT TO SPEAK AGAIN, I THANK YOU FOR LISTENING TO THIS PUBLIC COMMENTS BECAUSE A LOT OF US HAVE DIRECT EXPERIENCE. AND WE ARE ALSO ON COMMISSIONS, PERTAINING TO POLICY. THIS ISN'T ABOUT PETTY GRIEVANCES; THIS OFTEN IS A QUESTION OF MECHANICS. ARE THE LOGISTIC MECHANISMS IN PLACE, WHERE I CAN CALL AND RECEIVE A RESPONSE FROM SOMEONE? IS THERE A SPACE THAT I CAN EXPRESS A COMPLAINT OR A SUGGESTION, A GRIEVANCE OR NOT? AND MY DIRECT EXPERIENCE AND PERIPHERAL EXPERIENCE, TENDING ALL THE PEOPLE THAT I DO ON THE STREET, THERE ISN'T. THERE MUST BE. THIS IS ABOUT PRACTICAL IMPLEMENTATION, NOT JUST POLICY. PLEASE, APPRECIATE THE FACT THAT WE APPRECIATE YOU AND WE'VE GOT TO DO BETTER. THANK YOU VERY MUCH.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT, MARIA. IS THAT THE FINAL COMMENT?

>> CITY CLERK: THAT'S IT.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. THIS IS OUR LONGEST MEETING WE HAVE HAD SINCE I'VE BEEN MAYOR. IT'S 10:40. I WANT TO THANK YOU ALL FOR STAYING. THANK YOU TO THE STAFF FOR SETTING UP. IS THERE A MOTION TO ADJOURN?

>> SECOND.

>> MAYOR ISHII: MOTION FROM COUNCILMEMBER TAPLIN. SECOND FROM

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COUNCILMEMBER TREGUB. IF WE ARE ALL IN AGREEMENT THEN WE WILL PASS THIS UNANIMOUSLY. AND WE WILL BE ADJOURNED FOR THE EVENING. THANK YOU ALL SO MUCH. [ADJOURNED 10:40 P.M.]

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